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Conditions for the Use of Wh-Clefts: A Corpus-Based Study of Wh-Clefts in Parliamentary Speech

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1. Introduction

Wh-clefts are structurally divided "into two clauses, each with its own verb" (Quirk et al., 1985: 1383 in Zhou/Chen 2021: 2). In functional terms, they serve to introduce and foreground new information (Bondi 2017: 28 in Zhou/Chen 2021: 2). So, they offer a straightforward way to examine how English orders given and new information.

Although cleft constructions have been widely discussed in information-structure research, wh-clefts have not received much attention. Recent work on disciplinary discourse explicitly acknowledges that researchers "have not treated pseudo-clefts in much detail" (Zhou/Chen 2021: 1).

Much of the classic literature on clefts treats them as a family and compares it-clefts with wh-clefts (e.g., Prince 1978; Sornicola 1988; Declerck 1984; Hedberg/Fadden 2007). In this context, the work of Gast/Wiechmann (2012) is particularly relevant. Using the parliamentary speech, they provide cross-linguistic distributional evidence for English and German and explain why wh-clefts are used in public, rhetorical speech (Gast/Wiechmann 2012).

My research has revealed that relatively few studies have examined the information status in wh-clefts differentiated according to *wh-clause* and *post-copular constituent* (PCC), nor how *heaviness* is distributed within the sentence. Previous studies by Arnold et al. (2000) have examined the effects of *givenness* and *newness* and heaviness on *Heavy noun phrase shift* and *dative-alternation*. However, they have not investigated these factors on wh-clefts.

This paper addresses this gap by conducting a corpus-based analysis of wh-clefts drawn from parliamentary speech. It explores under what conditions these constructions are used. Specifically, it evaluates whether the wh-clause can be considered as known while the PCC introduces new information, following the *given before new* principle and whether wh-clefts systematically realize *end-weight* through PCC-heaviness.

As parliamentary discourse is both argumentative and monological, the study also examines the relationship between a wh-cleft and its preceding context. Moreover, I classify the cleft constituents of wh-clefts into fife types – *noun phrase* (NP), *complementizer phrase* (CP), *to phrase* (TP), *verb phrase* (VP), and *gerund* – following Gast/Wiechmann (2012: 12). The aim is to quantify their distribution

in the Europarl3 corpus and, by extension, to characterize preferred focus-packaging in this register.

In the following, prior work on pseudo-clefts will be reviewed, focusing on information status and end-weight. After that, the methods for this study will be explained including corpus selection, search, and filtering procedures. The results section then provides descriptive distributions and illustrates them with representative examples. The paper concludes with a summary of the findings and a note of the limitations. Furthermore, potential directions for future work will be outlined.

2. Theoretical Background

2.1 Wh-clefts

Cleft constructions are "linguistic structures which serve to encode special discourse theoretic devices" (Meinunger 1998: 49). A key distinction is made between (true) cleft sentences - *it-clefts* -, and *wh-clefts*, also known as *pseudo-clefts* (Meinunger 1998: 49; Prince 1978: 883). Structurally, an it-cleft consists of the expletive *it*, a *copula*, a *focused constituent* and a *relative clause*:

(1) It was Peter {who / that / Ø} Mary invited. (Meinunger 1998: 49)

Pseudo-clefts, in contrast, start with a *free relative clause*, followed by a copula and the focused constituent:

(2) What I read was a book. (Meinunger 1998: 49)

Both cleft constructions thus represent a non-canonical word order (Gast/Wiechmann 2012: 6). However, this paper will focus only on wh-cleft sentences and this distinction has been made solely for the sake of completeness and clarification.

Wh-clefts contain a *presupposition* (Prince 1978: 884; Collins 1991: 482). A presupposition can be defined as a "background belief, relating to an utterance, that must be mutually known or assumed by the speaker and addressee for the utterance to be considered appropriate in context" (SIL Glossary of Linguistic Terms). Put simply, it is information that the speaker assumes the listener knows or accepts as true before continuing the conversation. For example, (3) presupposes the proposition (4), which is treated as *given* or at least *inferable* (Prince 1978: 884, 888).

(3) What John lost was his keys. (Prince 1978: 883)

(4) John lost something. (Prince 1978: 884)

The speaker therefore assumes the hearer is already aware of the fact that John lost something (Prince 1978: 884, 888). Thus, Prince (1978: 888) outlines the following discourse condition on wh-clefts:

> A WH-cleft will not occur coherently in a discourse if the material inside the (subject) WH-clause does not represent material which the coöperative speaker can assume to be appropriately in the hearer's consciousness at the time of hearing the utterance. (Prince 1978: 888)

As Prince's (1978: 888) analysis demonstrates, the material in the wh-clause represents open propositions that can be interpreted as implicit questions. In short, the wh-clause should convey information that answers a question the speaker believes is already in the hearer's mind (Gast/Wiechmann 2012: 7). Thus, they are usually not appropriate as discourse openers (Prince 1978: 888). For instance, you do not start a conversation with (5a) or (5b), while the corresponding non-clefted forms are acceptable (6a; 6b).

(5) a. Hi! What I've heard about is your work. (Prince 1978: 888)
    b. Hi! What my name is is Ellen. (Prince 1978: 888)

(6) a. Hi! I've heard about your work. (Prince 1978: 888)
    b. Hi! My name is Ellen. (Prince 1978: 888)

Therefore, wh-clefts occur at the beginning of a discourse only under certain circumstances. These include scientific papers, as the author may assume that the reader is wondering what the text is about (Gast/Wiechmann 2012: 7). For this reason, an academic paper can begin with (7).

(7) What we have set as our goal is the grammatical capacity of children – a part of their linguistic competence. (Klima/Bellugi-Klima 1969: 448 in Prince 1978: 888)

(7) introduces the authors' article on how children use syntactic patterns. Although the title does not explicitly reveal a specific aim, readers can infer one from contextual knowledge about the academic genre, rather than from the wording of

the text. It is generally assumed that anyone writing a linguistics paper has a clear goal (Prince 1978: 888).

According to Gast/Wiechmann (2012: 7), the conditions for the use of wh-clefts can also be explained using the *Quaestio-Model*. Declarative sentences may be understood as responses to either implicit or explicit questions. The corresponding question is referred to as *quaestio* and the answer is correspondingly termed the *responsio* (Gast/Wiechmann 2012: 7). In the Quaestio model, wh-clefts can be considered sentences that combine the quaestio and its responsio within a single sentence. The wh-clause signals the question being addressed, while the PCC provides the answer. In this way, they resemble built-in question-answer pairs within a single clause (Gast/Wiechmann 2012: 8). The following example illustrates the idea.

(8) What we need is decentralization. (Gast/Wiechmann 2012: 8)
Quaestio (presupposed by the hearer): What do we need? (Gast/Wiechmann 2012: 8)
Responsio: (We need) decentralization. (Gast/Wiechmann 2012: 8)

Thus, using a wh-cleft construction assumes that the open proposition expressed in the wh-clause is a question that is already relevant to the conversation and is believed to be on the listener's mind (Gast/Wiechmann 2012: 8).

Wh-clefts are syntactically divided into two parts: a subordinate clause introduced by a wh-element, which carries propositional content (e.g., *What we need*), and a predicate consisting of a copula (usually is or was) followed by its complement (e.g., *is decentralization*) (Gast/Wiechmann 2012: 8). Thus, forming a wh-cleft results in the original monoclausal sentence being split into two distinct syntactic parts (Gast/Wiechmann 2012: 9). The following figure illustrates how Gast/Wiechmann (2012: 9) analyze the structure of wh-clefts and label their individual components.

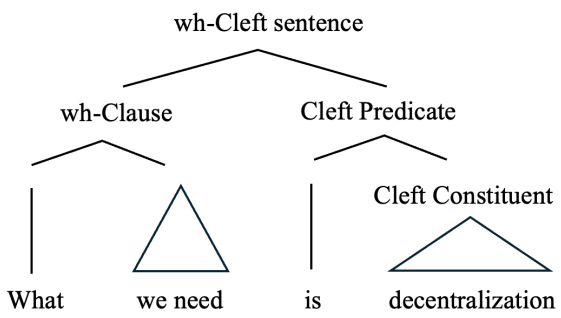

Figure 1: Structure of wh-clefts

Source: Own figure adapted from Gast/Wiechmann 2012: 9.

Furthermore, there are five types of cleft constituents in English: NP-Clefts (Noun Phrase-Clefts), CP-Clefts (Complementizer-Clefts), VP-Clefts (Verb Phrase-Clefts), TP-Clefts (To-phrase-Clefts) and Gerund-Clefts (*ing*-form) (Gast/Wiechmann 2012: 12).

1. NP-Clefts:
   (9) What we are seeking is [$_{NP}$ decreased administrative burdens, a more balanced proposal and fairness for all]. (Crowley; ID 26)
2. CP-Clefts:
   (10) What I can say is [$_{CP}$ that I hope that this building will now be occupied as soon as possible]. (Bolkenstein (NL); ID 2)
3. VP-Clefts:
   (11) What we must do, of course, is [$_{VP}$ take initiatives and introduce regulations at world level]. (Caudron (NI), (FR); ID 39)
4. TP-Clefts:
   (12) What we are aiming for in the long run with this rail proposal is [$_{TP}$ to attempt to cut down on traffic jams but also, more importantly, to benefit the environment, safety and a number of other aspects]. (Bouwman (NL); ID 9)
5. Gerund-Clefts:
   (13) What I would reproach the Commission for is introducing this system at Community level and, what is more, establishing all the necessary conditions for it to be extended. (Berthu (NI), (FR); ID 42)

2.2 Givenness and Newness

Researchers have used the notions of givenness and newness in various ways, and the different definitions are not always interchangeable. This has led to blurred concepts that, over time, have become non-operational (Loock 2013: 17).

Although their scope and application vary, most researchers agree that old information generally comes before new information (Arnold et al. 2000: 30). So, Clark and Clark (1977: 548 in Arnold et al. 2000: 30) summarize: "Given information should appear before new information". Gundel (1988: 229) refers to this as the *given before new* principle, a term also adopted by Arnold et al. (2000: 30). Arnold et al. (2000: 30) uses the distinction between *discourse-given*, *inferable*, and *discourse-new*, originally introduced by Prince (1992). Prince (1981 in Loock 2013: 70) differentiates between *new*, *inferable,* and *evoked* information (≈ given). An information is characterized as *given* "if its referent has been previously mentioned in the discourse" (Arnold et al. 2000: 30), more or less explicitly. *Inferable* means that the "referent has not been explicitly mentioned but could be inferred from something else that was mentioned" (Arnold et al. 2000: 30). NPs "whose referents are truly new to the discourse" (Arnold et al. 2000: 30) are classified as *new*.

This classification provides two advantages: it offers a clear coding scheme that is beneficial for empirical studies, and it has frequently been applied to depict discrepancy in the accessibility of discourse entities. This is important for understanding how the order of constituents affects the way information is produced and processed (Arnold et al. 2000: 30). However, this given/new categorization is a simplified depiction of accessibility. While new information is generally less accessible than given information, the latter can itself take many forms, resulting in a continuum of accessibility (Arnold et al. 2000: 30).

Building on 2.1, I treat givenness in wh-clefts as a consciousness-based constraint. Following Prince (1978: 888-889, 894), the wh-clause conveys information that the speaker assumes the listener is aware of, while the post-copular constituent introduces a new idea. Operationally, I code the wh-clause as *given* or *inferable* (with bridging when needed) and the post-copular constituent as *new*. Wh-clefts are ungrammatical when the focus is more prominent in the addressee's consciousness than the wh-clause (Prince 1978: 892). Furthermore, Prince lists

antecedent types that permit wh-clefts: explicit prior mention, implicit information, contrast, metalinguistic/thinking frames and happening frames. Some of these require bridge-building to make the wh-clause accessible (Prince 1978: 889–893).

There are several reasons why the *given before new* principle is preferable, as it offers advantages for both the speaker and the listener. Referring to something previously mentioned at the start of a sentence creates a link between the past and future information, giving the discourse continuity and making it easier for the hearer to follow (Arnold et al. 2000: 32). Moreover, since certain positions in a sentence are usually used to introduce new information. Speakers can use them to indicate to their listeners which part of what they are saying is new. While this does not affect whether the sentence is true or false, the order of the parts can strongly influence what the listener perceives as the main point. Thus, given before new facilitates successful communication (Arnold et al. 2000: 32).

From the speaker's perspective, presenting given information before new information helps to manage the demands of spontaneous speech. Referring to something new is more challenging because it requires selecting unfamiliar vocabulary, choosing appropriate expressions, and devising phonetic plans that have not been rehearsed. Postponing the introduction of these new, complex noun phrases gives speakers valuable extra time to plan how to deliver them (Arnold et al. 2000: 33).

2.3 Heaviness

The idea "that long, complex phrases tend to occur near the ends of their clauses" (Arnold et al. 2000: 29) goes back to Behaghel's so-called *Das Gesetz der Wachsenden Glieder* ('the law of growing constituents') (1909/10 in Arnold et al. 2000: 29). This can be summarized as a preference for larger constituents to follow smaller ones. Quirk et al. (1972) came to the same generalization and calls it *end-weight* (Arnold et al. 2000: 29).

There are many different definitions of heaviness or grammatical weight in the literature (Arnold et al. 2000: 29). Arnold et al. (2000: 29) measures heaviness "as the difference in length between two constituents, in terms of number of words". There are two main advantages for this approach: it reflects the proportional weight

of the two constituents, and it is possible to capture weight effects in a more fine-grained way using relative word counts (Arnold et al. 2000: 29).

Many studies (e.g., Bever 1970, Hawkins 1990) have tried to explain the functions of end-weight and outline its benefits for the hearer. Bever (1970 in Arnold et al. 2000: 31) summarizes the core idea: 'Save the hardest for last'. Hawkins (1990 in Arnold et al. 2000: 31) formulated a specific version of this concept, known as the principle of *early immediate constituents*.

> Constituents occur in the orders that they do so that syntactic groupings and their immediate constituents (ICs) can be recognized and produced as rapidly and efficiently as possible in language performance. Different orderings of elements result in more or less rapid IC recognition (Hawkins 1994: 57 in Arnold et al. 2000: 31).

Hawkins (1994) proposes that the aim of sentence processing is to identify the immediate constituents (ICs) of a phrase as early as possible. To evaluate the effectiveness of a given word order, Hawkins recommends counting the number of words required for all ICs to be clearly identified (Arnold et al. 2000: 31). This idea is demonstrated by the following example:

(14) I $_{VP}$[gave $_{NP}$[the valuable book that was extremely difficult to find] $_{PP}$[to Mary]]. (Arnold et al. 2000: 31)

Here, a complex NP follows the verb, so the listener cannot fully identify the ICs (NP and PP) until after eleven words (Arnold et al. 2000: 31).

(15) I $_{VP}$[gave $_{PP}$[to Mary] $_{NP}$[the valuable book that was extremely difficult to find]]. (Arnold et al. 2000: 31)

In (15), the PP precedes the long NP which allows the ICs to be identified after only four words. According to Hawkins, structures like those in the second example are easier to process because they enable earlier recognition of syntactic groupings and are therefore more efficient than those in the first example (Arnold et al. 2000: 31).

Another possible function of end-weight is to support the planning and production of speech. People often start speaking before they have fully decided

how they want to phrase something, working out the exact wording as they go along. Therefore, elements that are difficult to produce (e.g., long and complex structures) come at the end so that the speaker has more time to formulate them (Arnold et al. 2000: 32). Wasow (1997a, b) used examples of heavy noun phrase shifts (HNPS) to show that in such cases, speakers tend to choose an order that helps them in their own production, even if it is not ideal for the listener (Arnold et al. 2000: 32).

In English wh-clefts, end-weight is not just a processing preference, but also a recurring motivation behind the construction. Gast/Wiechmann (2012: 29) identify right-heaviness as one of four core factors motivating wh-clefting. In many instances, the wh-cleft primarily right-places the heavy-constituent, often a clausal complement, yielding essentially the same textual effect as it-extraposition. In such cases, the traditional discourse-pragmatic function of the cleft is overshadowed by a syntactic weight-balancing approach (Gast/Wiechmann 2012: 28). Wh-clefts implement the output condition of right-heaviness by keeping the lighter wh-clause to the left and the heavier post-copular constituent to the right (Gast/Wiechmann 2012: 28-29). The contrast between (16) (wh-cleft) and (17) (canonical SVO-word order) demonstrates the observation.

(16) Right-heavy structure
[What is remarkable] [is [that there was no mention…]] (Gast/Wiechmann 2012: 28)

(17) Left-heavy structure:
[That there was no mention…] [is [remarkable]] (Gast/Wiechmann 2012: 28)

2.4 Discourse Relation

The Penn Discourse TreeBank (PDTB) provides sense annotations for discourse relations (Prasad et al. 2008: 2964). According to Prasad et al. (2008: 2964), the set of sense labels is classified hierarchically with three levels, namely *class*, *type,* and *subtype*. The four major semantic classes are *temporal*, *contingency*, *comparison* and *expansion*. For every class, a collection of types is specified to provide a more precise definition of the sense (see Figure 2) (Prasad et al. 2008: 2964).

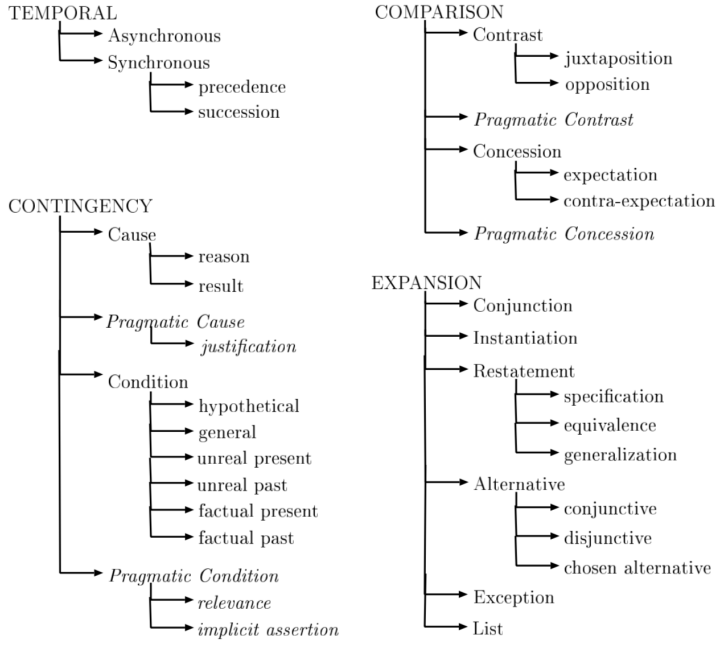

Figure 2: Hierarchy of sense tags

Source: Prasad et al. 2008: 2965.

To illustrate the scheme, I use *contingency*, which comprises "two types 'Cause' (relating two situations via a direct cause-effect relation) and 'Condition' (relating a hypothetical scenario with its possible consequences)" (Prasad et al. 2008: 2964). Then, its cause type has two subtypes: *reason*, "which applies when the connective indicates that the situation specified in Arg2 is interpreted as the cause of the situation specified in Arg1, as with the connective *because*" (Prasad et al. 2008: 2964) and *result*, which applies when the connective signals that the situation in Arg2 is understood as the outcome of the situation in Arg1, as in *as a result* (Prasad et al. 2008: 2964).

The class *temporal* refers to relationships that express temporal sequences or simultaneity between two events:

(18) The Mountain View, Calif., company has been receiving 1,000 calls a day about the product <u>since</u> it was demonstrated at a computer publishing conference several weeks ago. (Prasad et al. 2008: 2964)

Comparison involves relationships that compare two situations, events, or propositions, either by contrast or similarity. The class *expansion* refers to relationships in which a statement is expanded, clarified, or enriched with additional information (Prasad et al. 2008: 2965).

3. Methods

3.1 Corpus and Sampling

The study takes a descriptive approach, based on a corpus, to investigate the conditions under which wh-clefts are used. It focuses particularly on information status and heaviness. A corpus-driven methodology was chosen as it enables the systematic and replicable examination of naturally produced linguistic data. Considering the theoretical considerations mentioned above, the analysis has been developed to capture the structural aspects and discourse relations as well as the cleft constituent types of wh-clefts.

I collected the data from the Europarl3 corpus (OPUS – Corpus query CWB), which comprises transcriptions of discussions that took place in the European Parliament. I selected this corpus for the following reasons. Firstly, its size and thematic scope offers a sufficient number of examples of non-canonical word order constructions, such as wh-clefts. Secondly, as Collins (1991: 513) points out, wh-clefts tend to be used primarily in spoken language. Specially the parliamentary setting is one in which rhetorical devices such as clefts are commonly used by speakers to highlight their arguments (Gast/Wiechmann 2012: 4). Thirdly, previous researchers (e.g., Gast/Wiechmann 2012) have also used the Europarl corpus as a data source to investigate wh-clefts. This facilitates comparison with existing studies.

3.2 Retrieval and Screening

A corpus query was developed to identify potential wh-clefts, reflecting their structural pattern of a wh-clause followed by a copula (Gast/Wiechmann 2012: 8). The query string was:

```
[word="What*"] [word="[a-zA-Z0-9]*"]+
[word="is|was|isn't|wasn't|can|can't|could|couldn't|might|might|not|may|
may|not|should|shouldn't|must|mustn't|has|hasn't|been"]
```

The query begins with the search term *what*, as most English wh-clefts start with this form (Collins 1991: 483). Nearly all of the examples in the surveyed papers are *what*-initial, which is why I restricted the search to constructions beginning with *what*. In doing so, I have deliberately omitted the small number of clefts that start with other wh-elements (e.g., *who*, *where*). This methodological compromise significantly reduced the amount of irrelevant hits (e.g., *Who is responsible?*), which would have otherwise needed to be filtered out in large numbers during data cleaning. Thus, the query was optimized to strike a balance between recall (ensuring enough clefts were retrieved for analysis) and precision (minimizing irrelevant search results).

The right-hand side of the query shows copular and auxiliary forms that are commonly used before the focalized constituent (e.g., *is/was*, *negatives*, and *modals*). This wide range also captured variations such as *What we must do is…* or *What we should have done is….*

To guarantee a minimum of 100 wh-clefts despite potential inaccuracies, I requested the top 200 query results. All hits were manually screened against the structural definition of wh-clefts (Meininger, 1998: 49). Non-matches were excluded but still captured to assess query quality. Screening continued until exactly 100 genuine wh-clefts remained (N = 100), which enables reporting results as percentages.

To ensure transparency and traceability, all 100 examples were compiled into a Word document and given consecutive ID numbers (1-100). I then used these same identifiers in the Excel sheet, which allowed me to maintain a clear and consistent connection between the original data and my analysis.

123 hits were manually screened, because 100 were genuine pseudo-clefts and 23 were false positives (screened precision = 100/(100 + 23) ≈ 0.81). All false positives were highlighted in red, tagged as error in the Word document, and excluded from all counts and tables. Typical false positives were direct wh-questions, such as: *What measures is the Commission taking to prevent these infectious animal diseases from spreading into the EU?* (President) or *What more can be done to stop EU Member State registered companies giving advertising revenue to television companies like al-Manar?* (Charles Tannock (PPE-DE)). Other incorrect results that had to be sorted out included, for example, free relatives without a copular pivot. An example is: *What we have tabled here relates to the*

very thing that was not done in Britain, namely proper preparation of the liberalization process (Grosch (PPE-DE)). *What we have tabled here* is not followed by a form of *to be*, but the word *relates*. Thus, it is not a genuine wh-cleft construction. This underscores the need for a copular constraint in the query and justified manual screening to keep precision high. The query performed solidly with a screened precision of ≈ 0.81 but could still be improved.

3.3 Annotation Scheme and Measures

The analytical categories were created based on the theoretical concepts outlined earlier. I implemented them in a Microsoft Excel spreadsheet. Each wh-cleft was analyzed with respect to the following categories:

1. Information status of the wh-clause using the classification GIVEN, INFERABLE and NEW according to Prince (1981 in Loock 2013: 70) and Arnold et al. (2000: 30). I used the terminology of the latter. This distinction provides a simple coding scheme that is useful for empirical studies. Moreover, it is often applied to describe variations in the accessibility of discourse elements (Arnold et al. 2000: 30). I treated PCCs with a GIVEN anchor plus novel specification as NEW for counting purposes. For the presentation and interpretation, I combined GIVEN and INFERABLE into an additional class called ACCESSIBLE (listener-old), while keeping the three categories separate in the tables.
2. Information status of the post-copular constituent, using the same three-way differentiation.
3. Discourse relation categorized based on the four main classes of Prasad et al. (2008: 2965): TEMPORAL, CONTINGENCY, COMPARISON, and EXPANSION).
4. Cleft constituent type: NP (noun phrase), CP (complementizer phrase), TP (to phrase), VP (verb phrase), Gerund, adopted from Gast/Wiechmann (2012: 12).
5. Length of the wh-clause, measured in number of words.
6. Length of the post-copular constituent, also measured in number of words.
7. Relative heaviness, defined as the difference in length between the wh-clause and the post-copular constituent (Arnold et al. 2000: 29, 36). Adopted

from Arnold et al. (2000: 35-36), "each item was put into one of three categories of relative length". These categories of heaviness are demonstrated in Table 1.

Category	**Decision rule**
End-weight (PCC > WH)	PCC length – WH length = 2 or more
Balanced (PCC = WH)	PCC length – WH length = Between -1 and 1
WH-heavy (PCC < WH)	PCC length – WH length = -2 or less

Table 1: Categories of heaviness

Source: Adapted from Arnold et al. (2000: 36).

The definitions of each category were based on established literature to minimize subjectivity (Prince 1978; Arnold et al. 2000, Prasad et al. 2008; Gast/Wiechmann 2012). The combination includes both structural properties, such as length and heaviness, as well as discourse properties (information status, discourse relation). They allow to check whether the thesis that given information precedes new information applies to wh-clefts, at least in the Europarl3 corpus. In addition, it is helpful to find out whether end-weight is present.

Having defined the categories, I demonstrate how they are applied using one example from the sample (ID 47). The same step-by-step process was used for all items.

(19) Mr President, I would like to praise Commissioner Fischler for his insightful comments when introducing this debate, for we know that the environmental situation faces catastrophe when it comes to fishing and sustainability. This does not just apply to cod and white fish. All the scientists are afraid that we are fishing most of our fish species to extinction. We have to remember that, without fish, there would be no fishermen, there would be no economy and there would be no fisheries policy. *What we are also in the process of losing is a very important coastal and fishing culture in almost all European countries, which is*

possibly the worst catastrophe as far as we are concerned. (Paulsen (ELDR) (SV); ID 47)

This token has the typical wh-cleft structure as defined above: the wh-clause (*What we are also in the process of losing)* is followed by the copula *is* and a post-copular constituent (*a very important coastal and fishing culture…concerned)*. To identify the information status and discourse relation, I examined the available sentences, paying particular attention to those before the wh-cleft. In the preceding discourse, the speaker talks about environmental catastrophes and overfishing. He already mentioned fish extinction. Against this background, the open proposition *we are losing something* is already salient in the hearer's mind. However, this was not explicitly mentioned, which is why I do not classify it as GIVEN and therefore as INFERABLE. By contrast, the PCC introduces a specific, previously unmentioned loss, the coastal/fishing culture. Hence, the PCC is NEW.

The wh-cleft elaborates on the current argument rather than presenting causation, contrast, or temporal sequence. I therefore assign the discourse relation as EXPANSION. Moreover, the cleft constituent represents a noun phrase (NP).

What we are also in the process of losing is

1 2 3 4 5 6 7 8 9

a very important coastal and fishing culture in almost all European countries, which

1 2 3 4 5 6 7 8 9 10 11 12 13

is possibly the worst catastrophe as far as we are concerned.

14 15 16 17 18 19 20 21 22 23 24

The wh-clause comprises 9 words, whereas the PCC comprises 24 (24 – 9 = 15). According to the heaviness classification adapted from Arnold et el. (2000: 36), this follows the end-weight principle (right-heavy).

The annotation was done manually to guarantee accuracy. It was not suitable, to use automatic tagging as the information status and discourse relation demand precise interpretation of the surrounding context. I inspected a fixed ± 5 sentence context window around each wh-cleft. The analysis is limited by the corpus

interface, which only allows up to five sentences to be retrieved on either side of the sentence within the Europarl setup used here.

After annotation, I reviewed the data for internal consistency. Any coding decisions that were inconsistent were corrected. I then analyzed the data using both quantitative and qualitative methods. While quantitative counts offered an overview of category frequency, selected examples were investigated in greater detail to demonstrate heaviness and information status in real discourse.

4. Results

This section provides descriptive distributions of information status (wh-clause versus post-copular constituent), relative heaviness, discourse relations and cleft constituent types for 100 wh-clefts from the Europarl3 corpus. This is followed by brief examples and a hypothesized interpretation. After screening (see 3.2 Methods), the final dataset comprised N = 100 wh-clefts. Therefore, all percentages refer to N = 100 tokens.

4.1 Distribution of Information Status

The following section presents the distribution of information status within the wh-clefts investigated.

Wh-clause information status	**%**
GIVEN	12
INFERABLE	82
NEW	6

Table 2: Information status wh-clause

Post-copular constituent information status	**%**
GIVEN	0
INFERABLE	0
NEW	100

Table 3: Information status post-copular constituent

As Table 2 and 3 illustrate, wh-clauses in the Europarl3 corpus were rarely NEW (6%), while the PCC in every wh-cleft contained NEW information[1]. The wh-clause was classified in the intermediate category INFERABLE in 82% of cases, which means that it accounts for the majority. In 12 wh-clefts the information in the wh-clause was (nearly) explicitly mentioned beforehand and therefore classified as GIVEN. (20) is a classic example.

[1] I treat PCCs with a GIVEN anchor plus novel specification as NEW for counting purposes.

(20) We do not have to invent them. They exist already. Is ECHO not a preventative agency? Is our capability to act diplomatically not a preventative capability? *What we did not have at all was the possibility of acting at the other extreme of the spectrum of crisis management.* (Solana; ID 4)

The preceding sentences established the existence of preventive capabilities. The wh-clause *What we did not have at all* highlights a logical gap or contrast in the discussion: The absence of a corresponding capability. The listener can therefore infer that if some capabilities exist, the speaker will address the lack of others. This makes this information INFERABLE rather than explicitly GIVEN. In contrast, the PCC presents NEW information that has not been mentioned in the discourse before, nor can it be inferred from anything.

Following Prince (1992 in Ward/Birner 1996: 24-25), I treat INFERABLE as a given-like (accessible/bridging) status: though often textually new, I interpret it as hearer-old. Consistent with Prince (1978: 889), the information in the wh-clause is seldom reiterated explicitly (see Table 2). For interpretation, I therefore collapse GIVEN and INFERABLE into an accessible (non-new) class, while keeping the two terms separate in the tables. On this view, the distribution supports the given before new principle: the wh-clause usually presents material that can be retrieved or is accessible, while the PCC conveys new information (94% accessible in wh-clause; 100% NEW in PCC). The unusual case that the wh-clause is NEW, shows (21):

(21) If you indeed proceed to act on the basis of Article 202, should the costs of this operation not be covered by the Council rather than the Commission, as has been the case to date? Perhaps it will be possible to give an answer to this question as well. Mr President, I would first like to thank Mr Pronk for pointing out that Article 202 is by no means a legislative soft option, and it does not make life easy for the Council or the Commission I would also like to thank the Commissioner for her clear statement about the arrangements for the tripartite social summit, and to thank the Danish Presidency for attempting to accommodate us. *What I do not understand as the nominated rapporteur, however, is that*

at a moment when we are anxious to tackle employment policy and growth in an active way, we are wasting time. (Ettl (PSE); ID 44)

Although the preceding discourse mentions Article 202 and procedural matters, it does not provide a reference point or establish a context for *What I do not understand*. Therefore, the wh-clause introduces a NEW discourse referent rather than bridging to an accessible one. This referent only becomes apparent once the PCC specifies it (*that we are wasting time*), which is why the wh-clause in (21) is labelled NEW.

Beyond information status, the length difference fits what the construction is doing. The wh-clause points back to what is already known, and the PCC, which is usually longer, carries the new point.

4.2 Relative Heaviness

The following section shows how heaviness is distributed within the wh-clefts.

Relative heaviness	**%**
PCC > WH	91
PCC = WH	3
PCC < WH	6

Table 4: Relative heaviness

The data supports the end-weight theory. In 91% of cases, the PCC is longer than the wh-clause, in 3% they are the same length, and in 6% the wh-clause is longer (see Table 4). Therefore, longer/heavier material is usually positioned after the copular which has the effect of right-branching. (22) is representative for the other 90 cases.

(22) What we do know is that a number of man-made chemicals that have
1 2 3 4 1 2 3 4 5 6 7 8
been released into the environment, as well as a few natural ones, have
9 10 11 12 13 14 15 16 17 18 19 20 21
the potential to disrupt the endocrine system of animals, including
22 23 24 25 26 27 28 29 30 31
humans. (Wallström, ID 15)
32

The wh-clause contains 4 words vs. PCC = 32 words. This results in a difference of 28, making PCC > WH. Thus, it strongly corresponds to the hypothesis or preference of placing heavy material at the end of the sentence. (23), in contrast, presents the differing case, where PCC < WH.

(23) What perhaps is just as vital as this need for rapid communication
1 2 3 4 5 6 7 8 9 10 11 12
and coordination is for citizens to be trained and educated to protect
13 14 1 2 3 4 5 6 7 8 9
themselves. (González Álvarez (ES); ID 27)
10

The wh-clause contains 14 words, whereas the PCC contains only 10. This results in a relative heaviness of -4. Because the value is less than minus 1 (see Methods for classification), the wh-clause is heavier.

A notable finding is that when the wh-clause is longer than the PCC, the difference in length remains minimal. In fact, the largest difference in such cases is only seven words (ID 54). By contrast, when the PCC contains more words than the wh-clause, the difference is often much greater (see (22)).

4.3 Discourse Relation

The following section provides an overview over the discourse relation of the wh-clefts.

Discourse relation	**%**
EXPANSION	50
CONTINGENCY	37
COMPARISON	13
TEMPORAL	0

Table 5: Discourse relation

The discourse labels are in line with the other results. In most cases, they elaborate on what is already being discussed or justify a position (EXPANSION, CONTINGENCY). When there is a comparison, the contrast is usually specified in the PCC, which is why it is both NEW and heavier there.

EXPANSION dominates (50%), followed by CONTINGENCY (37%) and COMPARISON (13%), with TEMPORAL essentially being absent (see Table 5). Put simply, wh-clefts in parliamentary speech are primarily used for elaboration and causal/explanatory purposes rather than for temporal sequencing. (24) is a classic case of EXPANSION.

(24) Mr President, I too should like to endorse the statement made by my fellow Member from the Liberal Group, Mrs Flesch. I would like to add something further. It is a fact that very few Members of the House are present here in Strasbourg on Friday mornings. Nevertheless, I think it is scandalous that some Members want to prevent others from working on Friday mornings. *What I find even more scandalous is that these Members think - and I have here an e-mail to this effect from Mrs van Hulten to other Members - that when the Friday sitting is removed, it would still be possible, in spite of everything , to register on Fridays, in order to receive one ' s salary, even without having worked*. (Goebbels (FR); ID 11)

It builds on the previous evaluation by providing more specific information: after describing it as *scandalous* that some Members obstructed Friday's work, the wh-cleft elaborates on what is *even more scandalous*, namely the belief that members could register on Fridays to receive a salary without working. As this is an additional specification of the same stance rather than a causal, contrastive, or temporal move, it fits the EXPANSION class.

(20) is an example cleft for the rarer case of COMPARISON, as it sets up a clear contrast. The speaker lists what already exists (ECHO, diplomatic capability) and then opposes this to what is lacking. The wh-cleft provides the missing counterpoint, *the possibility of acting at the other extreme*. Therefore, (20) is classified as a comparison/contrast rather than cause or elaboration.

4.4 Type of Cleft Constituent

The following section presents the distribution of the cleft constituent types in wh-clefts.

Cleft Constituent Type	**%**
Noun-Phrase	43
Complementizer-Phrase	39
To-Phrase	9
Verb-Phrase	6
Gerund	3

Table 6: Cleft constituent type

Of the 100 wh-clefts, noun-phrase cleft constituents (43%) slightly outnumber complementizer-phrases (39%), indicating two dominant types. Speakers either foreground a nominal focus (25), or a complementing focus (26). This distribution suits formal, argumentative discourse, where concepts and propositions are stabilized as objects of evaluation.

(25) What our committee is proposing today is [$_{NP}$ a modest set of proposals]. (Richard Corbett; ID 95)

(26) What that means is [$_{CP}$ that they want a peaceful solution, and that is what we too are working towards]. (Ferrero-Waldner, (DE); ID 76)

To-phrases (9%) are more common than verb phrases (6%), suggesting that wh-clefts often highlight goals, intentions, or prospective action (27).

(27) What we are aiming for in the long run with this rail proposal is [$_{TP}$ to attempt to cut down on traffic jams but also, more importantly, to benefit the environment, safety and a number of other aspects]. (Bouwman (NL); ID 9)

Gerunds (3%) are rare, showing that the register of parliamentary speech favors deverbal nouns over -ing cleft constituents.

5. Conclusion

This study aimed to identify the conditions for the use of wh-clefts in parliamentary speech. Two predictions were tested: (i) whether wh-clauses are accessible (GIVEN or INFERABLE) while the post-copular constituent (PCC) contains NEW information, following the given before new principle, and (ii) whether wh-clefts show end-weight/right-branching through PCC-heaviness. Additionally, the analysis examined the local discourse relationship between each wh-cleft and its preceding context. Moreover, the distribution of cleft constituent types in the Europarl3 corpus was identified.

The findings reflect all intended aims. Firstly, the information status distribution favors given before new – the wh-clause was accessible in the vast majority of cases (GIVEN 12%, INFERABLE 82%, in total 94%), while the PCC contained NEW information. Secondly, wh-clefts supported right-heavy realizations – in most cases, the PCC was longer than the wh-clause in terms of words (PCC > WH = 91%). Thirdly, EXPANSION relations dominated (50%), followed by CONTINGENCY (37%) and COMPARISON (13%). TEMPORAL relations were non-existent, suggesting that speakers primarily use wh-clefts to elaborate on, specify or justify their ongoing arguments rather than to sequence events. Fourthly, noun phrases were the most frequent cleft constituents (43%), closely followed by complementizer phrases (39%). To-infinitives and verb phrases were far less common, and gerunds were marginal (3%).

Overall, these patterns demonstrate that wh-clefts combine an activated open proposition in the left part with the focal, heavier content clause at the end, which is where English prefers NEW and/or heavy elements.

The dataset is limited to parliamentary speech and *what*-initial pseudo-clefts, which leaves out some wh-cleft types. Moreover, the analysis relied on a five-sentence window, so the results may differ if more context is considered. Furthermore, heaviness was measured using word counts, which is transparent but coarse.

Future work could include other wh-heads and reversed wh-clefts and sample other registers as well, such as conversation, news, and books. Moreover, it could test finer weight metrics, such as syntactic complexity.

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Appendix

Analyzed Wh-clefts from Europarl3 Corpus

ID 1: Swoboda (DE)

In this respect , Mr President of the Commission , I too should like to address the issue of globalisation which you speculated on and how it is perceived by large segments of the population . The feeling of being at the mercy of others , of lacking in influence and of having no protection from the state leads in the best case scenario to a lack of interest in politics and a refusal to vote , as in the European elections and , in the worst case scenario , to extremist voting patterns . The Union , like everyone else , has not yet understood how to present the EU to the citizens of the EU as a means of protection against the negative effects of globalisation . We are in the process of building a house but too few of our citizens really feel at home in our house . **What we need are not** just reforms of the World Trade Organisation and the economic architecture - and , significantly , the President of the Commission forgot to mention the reform of the financial institutions and international financial architecture ; we also need confidence-building measures for our citizens , who rightly expect help and support from and in the EU with the inevitable and painful process of adapting to new global circumstances . In this respect , what the Commission says about boosting Europe ' s voice is important . You yourself , Mr President , spoke of a model of which , unfortunately , there is little mention in the document . You said that we must offer our citizens a model of economic , social , cultural and ecological development , both internally and towards the outside world , which differs from other models , including the US model . In this sense , the USA is not only our partner ; it is also our competitor ; not our opponent , our competitor and we must fight to see which of us offers our citizens the best model .

ID 2: Bolkestein (NL)

Does it seem normal to you that the Commission should attend such an absurd event organised by the Spanish Government ? It does not fall within my remit to make statements about internal political situations within one Member State or another . As such , I would prefer to withhold any comment on the situation which Mr Berenguer has just described . I have to confess that I fail to comprehend why a

certain opening ceremony was held in Spain. What I can say is that I hope that this building will now be occupied as soon as possible . May I also add that I hope to be in Alicante myself at the end of May to speak at a conference. I hope that this building will then be occupied . I would like to point out to the Commissioner that it is not an electoral question . As members of the Committee on Legal Affairs and the Internal Market , we have followed the creation of that institution and it is clear that it was established for electioneering reasons .

ID 3: Seixas da Costa (PT)

Firstly , is the Council fully aware of and concerned about the fate of these prisoners ? Secondly , what does it propose to do about them ? Mr MacCormick , first of all , I would like to answer your comments . I did not defend attacks on civilians . **What I said and what I explained in a previous answer is** that there are civilian targets linked with structures which are objects for military action , and you know as well as I do that some military actions not only go for military targets , but also for civilian targets and structures which are connected with military action . What is a legitimate target is obviously a grey area . As I said , we are not making value judgements about specific actions . We are making an overall value judgement about NATO ' s action , and this overall value judgement is positive . We agree with the general view of NATO ' s action .

ID 4: Solana

We do not have to invent them . They exist already . Is ECHO not a preventative agency ? Is our capability to act diplomatically not a preventative capability ? **What we did not** have at all was the possibility of acting at the other extreme of the spectrum of crisis management . The European Union is going to be , at the end of the day , the most important group of countries able to face problems related to crisis matters , from the humanitarian crises to force deployment . In Mozambique if it is necessary , or in the countries of Europe if it is necessary . In a very few days Eurocorps built up by European countries is going to be deployed to Kosovo not to walk around , but to prevent people from killing one another . And I would like to tell my friend Mr Cohn-Bendit that at this very moment ,

ID 5: Seguro (PT)

In response to this resolution , the Angolan Ambassador in Paris wrote a letter to the European Parliament , and in this letter , a copy of which I have here , he insinuated at a certain point that a fellow Member of this House , Mário Soares , has political , ideological and " other kinds " of links with the war criminal Jonas Savimbi . In addition to this letter , further statements were made , which are false , insulting and which attempt to undermine the dignity and honour of a fellow Member of this House , who has , in the past , been an excellent President of a Member State of the European Union . Mr President , we all have the right to express our opinions in this House and in a democracy . We may agree with something or we may not . **What is unacceptable is** that a state that maintains relations with the EU should be allowed to respond by attempting to undermine the dignity and honour of a fellow Member of this House . My question is , therefore , whether the President of the European Parliament has already responded to the Angolan Government through its Ambassador in Paris ? If it has already responded , what was the tenor of its response ? If it has not yet responded , it is crucial that this House is clear and unequivocal in repudiating the attitude of the Angolan Government towards our colleague , and therefore towards the European Parliament , an area of freedom and democracy in which we all have the right to express our opinion . Ladies and gentlemen , I understand the political , institutional and compassionate motives behind these speeches .

ID 6: Seixas da Costa (PT)

We still have judicial cooperation in criminal matters under the third pillar , but at the moment we are working towards establishing a European area of freedom , security and justice , and we hope that the Commission can respond to this by presenting a scoreboard giving us a catalogue of pertinent measures . On the other hand , I would like to stress that the European Charter of Fundamental Rights that is being discussed will very probably help to strengthen these new aspects and will certainly help to give the European Union a more solid body of legally arguable principles , which some of us , and the Council in particular , would like to see . As for your question about Austria , I would like to repeat what I said about Austria ' s compliance with Articles 6 and 7 up to now . It was good to hear you talking about

an " ad hoc decision " as it is clear that this was an ad hoc decision , and one taken by the 14 Member States regarding their relations with the Austrian Government . **What was at issue was** not the Austrian Government ' s conduct , but its political make-up . During an earlier debate I said that we are now all Austrians within the European Union , and I would like to repeat that . We are all Austrians because the European Union is a single entity in terms of rights and citizenship , and I would like to have the same rights in Austria that Austrian citizens should have in my country . So I do not like to be taught any lessons by a party which behaves in a racist and xenophobic way , and makes racist and xenophobic statements which it seems to me give us every reason to be concerned . These concerns are at present being expressed in a bilateral political framework rather than at European Union level , because there would only be scope for a decision at European Union level if there were an infringement of Articles 6 and 7 of the Treaty of Amsterdam , which means that , for the future , Mr Rübig , we will have to assess to what extent the Austrian Freedom Party can make a break with its past ideology , because that is crucial .

ID 7: Kuhne (DE)

The Council finances its own building out of compulsory costs in the budget but has denied Parliament the facility of direct financing . I am not in favour - and I say so quite clearly , despite all the difficulties which we have to overcome - of sending yet another box of chocolates over to the Council in its building and tying yet another ribbon around it and saying , all right , we profess our faith in the fact that the whole procedure is beset with legal problems . We have already discussed them at length . We have received every document written on the subject . **What I say is** , whoever still has a problem should please go to the European Court of Justice and get it cleared up there , rather than turning plenary into an extrajudicial seminar . They should also consider what it means , from a political point of view , if we go ahead and give these sweets to the Council . The inventory has been addressed . Mr Seppänen addressed it yesterday . The report itself lists the difficulties which have arisen , the huge number of items which have disappeared or , to put it bluntly , been stolen .

ID 8: Khanbhai

We are confident that the Commission will ultimately be able to agree fully with this principle . Mr President , my report is about the European Coal and Steel Community and how that fits in with Mrs Stauner 's report and the discharge . We have decided to give the discharge on three conditions , and the conditions are clearly spelt out . We hope that by 15 August those concerned will give us the information that is requested . **What I find extraordinary is** that EUR 2 billion are being managed by this vestige - the last remainder of the European Coal and Steel Community , which , of course , was very important historically but is not important any more . It is being wound up and it is remarkable that such an instrument should continue with that budget and 145 staff . I believe such an instrument should be wound up as quickly as possible so that it is incorporated in perhaps a reformed European Investment Bank : a European Investment Bank that is transparent and accountable . Such investments can and should be made by professional banks rather than the little outfit that we have at the moment . The number of people employed for the amount of money being invested is again quite disproportionate .

ID 9: Bouwman (NL)

This also means that employers ' organisations and trade unions will have an entirely different role and outlook with respect to this work . In short , the proposal has a knock-on effect on many other areas and it will be some time before it is a reality . Certainly if I look at the high-speed link and its technical specifications , I share Mr Savary ' s view - who has drawn up an excellent report - that it is scandalous that three , nearly four years after the previous directive on interoperability of the high-speed link , we are still waiting for technical specifications for interoperability . This does not bode well at all for the future . **What we are aiming for in the long run with this rail proposal is** to attempt to cut down on traffic jams but also , more importantly , to benefit the environment , safety and a number of other aspects . It has to be said , and I have already mentioned this several times within other fora , that the rail system is gradually losing its environmental edge , not so much because it does not take any initiatives itself , but more so because we ourselves prescribe few , if any , specifications for example , regarding the use of diesel-electric locomotives , the type of electricity used , etc. What we would like , and this is why we welcome with open arms the dual speed for technical specification requirements , is for this technical

specification to at least take account of energy consumption and air pollution , something which will require a great deal of hard work . The second important point is of course the social dimension , as I touched upon a moment ago . I regret that we are confining ourselves to the bare minimum , i. e. working conditions .

ID 10: Martinez (FR)

True , but it is just as inconsistent to bomb Kosovo and then pay to rebuild it , or to eliminate internal borders and lose customs duties and then set up OLAF to defend the financial interests of the European Union . In demographic terms , is it not inconsistent , ladies and gentlemen , to permit the loss of 5 million Europeans per annum due to abortions and then to weep over 500 000 deaths due to smoking ? Then there is the puritanical sideslip . The rapporteur sends a shiver down my spine when he speaks of social aberrations , social instincts . **What I hear is** : the Social Democratic Sweden of the 1960s sterilising fifteen year old adolescents because they were social misfits . I hear : moral order , the Salem witches . I hear : the Puritanism of northern Europe , these reformers desperate to reform everything , including the way we eat and drink . I hear : northern Europe banning wine , on the pretext that wines are harmful to health , but not banning injecting oneself with all sorts of substances . It is the same puritanical streak shared by Robespierre , Pol Pot , the Greens and the Quakers .

Error: Paasilinna

The cost of alcohol fell . Besides , they concoct alcoholic beverages over there by mixing tap water and home-made spirits . That makes for a pretty powerful brew . You can buy that virtually for the price of the bottle alone . **What production could** be so cheap that you could compete with that ? Besides , who will be bothered by this restriction on imports from the east ? It will not bother anyone , at least not the EU . It is being said here that taxation cannot reduce the consumption of alcohol . What sort of experience have you had in this regard ?

ID 11: Goebbels (FR)

Mr President , I too should like to endorse the statement made by my fellow Member from the Liberal Group , Mrs Flesch . I would like to add something further . It is a fact that very few Members of the House are present here in Strasbourg on

Friday mornings . Nevertheless , I think it is scandalous that some Members want to prevent others from working on Friday mornings . **What I find even more scandalous is** that these Members think - and I have here an e-mail to this effect from Mrs van Hulten to other Members - that when the Friday sitting is removed , it would still be possible , in spite of everything , to register on Fridays , in order to receive one ' s salary , even without having worked . I urge the Bureau to be consistent and to also remove the possibility of MEPs ' receiving money for Fridays on which they have not worked ! . (FR) In the vote on the calendar of part-sessions for 2001 , most Members of the European Parliament believed that they had the right to remove Fridays from the monthly Strasbourg part-session . This is just another episode in the perpetual secret war waged by the anti-Strasbourg faction against the wording of the Treaties .

ID 12: Lucas

But while Cargill is so delighted that its profits will rise while Chinese self-sufficiency in agricultural goods falls , the picture is a good deal less optimistic for the people of China themselves . It has been estimated that increased competition from cheap agricultural imports could mean that about 400 million rural Chinese will no longer be needed on farms by 2005. It is almost impossible to conceive of such a huge figure or to think about the social dislocation and misery that will cause . The Commission is offering technical support to the Chinese in order to help them with the enormous economic restructuring which accession to the WTO will bring . **What I would like to see is** an equal concern to help with the almost inconceivable social restructuring which will inevitably follow in its wake with - I repeat - 400 million rural farmers out of a job . Mr Lamy has been quoted as saying that the bilateral negotiations between the EU and China yielded 96 % of what the EU was demanding . Would he like to estimate what percentage of success the Chinese people will get from these same negotiations ? Mr President , representatives of the Commission and the Council , the volume of world trade has soared in recent decades . Despite the giant leaps forward , many problems remain unresolved and questions left open with regard to world trade .

ID 13: Atkins

Whilst this pressure has been growing , we owe it to those working in the system to congratulate them and thank them for what they have done . Unfortunately - and this is not entirely their fault - they are not coping with the pressures as well as we would wish : we have all had experience of that only recently , as a result of the delays caused by the strike in France . All this , then , has a detrimental effect upon the mobility of our citizens , and in terms of the economic and financial and social costs for our businesses and a wide variety of other people affected on a day-to-day basis by what is going on . I would like to congratulate Commissioner Palacio for having the initiative to bring this to our committee in the terms that she did , and with the force and verve that she has shown , initially , in setting up the high level group , and also in the leadership that she has given to addressing this problem . **What has been** produced by the Commission is a major contribution to dealing with the saturation of airspace . The Council of Transport Ministers needs to take a political decision to address this . We cannot put it off any longer . It needs attention now . We need a single sky over a single market but at the same time we have to recognise that individual nation states have views about how these matters should be addressed , particularly insofar as they affect the livelihoods of the workforce and also the use of national airspace for military purposes .

ID 14: Watts

Indeed , above all , safety first should be our guiding rule , and I am sure it will be our guiding principle in the months to come . Between 1986 and 1996 air traffic in Europe doubled . It will double again in the coming ten years . We need to tackle this issue urgently and swiftly but in a coherent way . **What we want to hear perhaps from the Commissioner today is** a clear timetable from her as to the speed at which she will be acting in the months to come . We all know there will be people waiting in airport lounges this summer asking , why their plane is delayed , not for minutes but for hours . Hopefully the Commissioner today can bring forward a timetable for when those delays will cease . I look forward to her comments , particularly bringing this Parliament up to date on the conclusions last week of the Council which received the interim report of the high level group . I urge colleagues to back the rapporteur 's proposal and I urge the Commissioner to bring forward a very clear timetable .

ID 15: Wallström

It is difficult to imagine a more unsustainable trend than one that would lead to deterioration in our capacity to reproduce . The area of endocrine disrupters is a complex one where there are still many questions to be answered . There are certain things we know . For some we can make predictions with confidence and others where we are faced with considerable uncertainty . **What we do know is** that a number of man-made chemicals that have been released into the environment , as well as a few natural ones , have the potential to disrupt the endocrine system of animals , including humans . Among these are persistent bio-accumulative compounds that include some pesticides and industrial chemicals as well as other synthetic products . Many wildlife populations are already affected by these compounds . There are adequate quantitative data showing a causal link between exposure to these substances and a reduction in reproductive success in wildlife . There are also some general conclusions that have been drawn by the research community such as the fact that the chemicals concerned have entirely different effects , as Mr Arvidsson said , on embryos , foetuses and perinatal organisms than on adults and that effects are more often manifested in offspring , rather than in a parent that has suffered exposure .

ID 16: Meijer (NL)

We say Italy should make its law conform with the decision of the Court and give these teachers the right to be such . Mr President , there is clearly something wrong with the policy governing the appointment of foreign teachers in Italy , if they are only granted temporary appointments as technical administrative employees . This leaves them in a precarious legal position , and means that they receive lower pay than their Italian colleagues for the same work . This has already been established by the Court of Justice and the ombudsman . **What is important is** whether this came about by unhappy accident , or whether a quite deliberate decision was taken to maintain this distinction on a permanent basis . I assume that the Italian educational authorities are already fully appraised of the criticism , but the impression I am getting is that this has not convinced them of the need to do things differently from now on . Even though I am an advocate of national autonomy and the right to diversity , I endorse the motion for a resolution because there must never

be discrimination on the basis of nationality . If we adopt the proposed resolution , will it bring about any changes in the situation , or is there nothing the European Union can do about it at the end of the day ? Is Italy to receive a fine by way of punishment ?

ID 17: Vitorino (FR)

I say to you quite candidly that I fail to understand how this initiative for judicial cooperation at the level of Eurojust can be seen as an attack on , or a threat to , the guaranteeing and protection of fundamental rights . It has to be said that either we subscribe to the democratic model with which we are familiar , one based on the division of powers , and one which recognises that the courts have supreme authority when it comes to guaranteeing individual rights , and we acknowledge that European judicial cooperation in criminal matters consists precisely of reinforcing coordination between European courts in their capacity of protectors of fundamental rights - and this is the model to which I personally subscribe - or we can choose not to subscribe to this model and , in that case , I fail to understand how one can see this initiative for developing a common judicial area as posing any threat to guarantees on fundamental rights . Let us be quite clear about this . We are not in the process of harmonising European criminal law with a sledgehammer . **What the Tampere Summit required us to do was** to adopt , with a view to combating cross-border crime , transnational rules in areas where it is recognised that the transnationality , or if you like the supranationality , of legal instruments constitutes added value in terms of combating illegal and criminal acts that are supranational by nature . Criminals must be left in no doubt as to this supranationality . That is why when we were asked at Tampere for common rules in the field of indictment and penalties for crimes against the environment , drug trafficking , trafficking in human beings , child pornography , terrorism or Internet crime , it was because it was recognised that these were types of supranational criminal activities which had to be dealt with using supranational instruments . However , since with Eurojust we are talking about the coordination of national public prosecutors and judges in order to combat all forms of serious crime - and on this point I agree with the approach taken by the rapporteur - this concept is being enlarged : we are no longer talking solely about cooperation on purely transnational crimes , but also about cooperating to counteract criminal activities .

Such would be the case , for example , with a criminal who commits a crime in one Member State and then seeks refuge in another Member State , as their crime has been a serious one .

Error: President

Question No 9 by Olivier Dupuis (H-0890/ 00) : Subject : Algerian ban on WAFA party The international press reports that the Algerian Minister for Internal Affairs , Mr Yazid Zerhouni , refuses - in violation of the procedures provided in law for setting up political associations and parties - to recognise the WAFA party led by the former minister , Ahmed Taleb , which has been set up in full compliance with current legislation . This party , which aims to reconcile Islam and the modern world and which could make a significant contribution towards reviving the country 's ailing democracy and , therefore , strengthening the rule of law , finds itself subjected to a ban on the well-worn pretext that it would represent 'a threat to State security ' . **What initiatives has** the Council taken , or will it take , to persuade the Algerian authorities to respect their own laws and thereby also promote the revival of democratic debate and the political process , thus enabling Algeria to emerge from the serious crisis in which it finds itself ? Under the Barcelona process , Algeria endorsed a number of principles including respect for the rule of law . The Presidency Conclusions adopted at the end of the fourth Euro-Mediterranean Conference in Marseilles on 15 and 16 November 2000 explicitly mention the need to boost political dialogue among the 27 members , including at ministerial level , particularly on the following subjects : the process of consolidating the rule of law and respect for human rights and democratic principles . The bilateral political dialogue which the European Union is conducting with Algeria does indeed focus on the objectives you stressed in your question , i. e. restoring debate and a democratic political dynamic . In fact , three years ago , the European Union initiated this kind of political dialogue at ministerial level on the basis of specific guidelines : firstly , condemnation of violence and terrorism , solidarity with the Algerian people , the need for the Algerian authorities to undertake political and economic reforms , the need for dialogue between the government and the opposition , the European Union ' s goodwill with regard to developing relations and cooperation with Algeria , and , finally , the wish to see an open comprehensive political process implemented in Algeria .

Error: Malmström (SV)

This organisation is the very oldest in the Maghreb region and the action has given rise to protests the world over . Ambassadors have protested on behalf of the UN . Members of the organisation are harassed and have been prevented from meeting , with disproportionate police action . Sympathisers with the movement abroad have been prevented from returning . What crimes they are guilty of is unclear and the action should be dropped . Finally , we are greatly concerned at the condition of those prisoners who are on hunger strike . Last week one of the prisoners , Rached Jaidane , fell into a coma . His family have been given no information as to his condition . The young student Béchir Habid has been on hunger strike since 18 October .

ID 18: Villiers

Mr President , the main points of controversy in this report concern three different types of contractual agreement , namely repo agreements , netting agreements , and contracts conducted on a regulated market . As Mrs Peijs ' report outlined , these types of contracts were discussed in committee pending this debate and , in essence , what we are seeking to do with the compromises proposed by Mrs Peijs is to ensure that parties can choose their own contract law in relation to these particular contracts , but not their own winding-up proceedings law . There is a separation here between the law of the contract and the external insolvency law , because it is quite important to ensure that parties , though they may choose the law of contract , may not actually choose their own insolvency law . Now a problem arises concerning the interaction between the law of contract and insolvency law . **What we are trying to do is** to ensure that the contract operates and whatever proceeds are left at the other end are then dealt with according to the insolvency law of the home State . There is still one slight uncertainty in the text about what happens with regimes , for example , in Spain which have insolvency proceedings which kick in before the contract law actually takes place . In essence , these are known as automatic stays and mean that in certain countries , such as Spain , I believe all contracts are suspended automatically by an insolvency proceeding . I applaud Mrs Peijs ' work in reconciling what looked fairly irreconcilable and coming up with a solution that favours home State control which is preferable in

terms of the internal market , but I have some anxiety that there will still have to be some fine-tuning . I hope that we will not have to have a third reading , but we may have to just to make it absolutely clear that these automatic stays would not affect netting contracts , repo contracts and contracts in a regulated market .

ID 19: Rübig (DE)

That cannot be done . Any action and any plans have to start at local level . What we can do is to provide some advice and links to others who have the same problem . Mr President , we are always so surprised when the balance of nature is upset . **What I should** like to ask is whether we could investigate why the balance has been upset under European research programmes ? I wish I could answer that question . I can say that the right way to deal with this problem of the Ludwigia grandiflora , which is its Latin name , is to discuss this during the technical days which are being organised on 23 and 24 January . It is a conference for those who are concerned about these things . Perhaps you will be able to get some more information about this primrose willow and the way it has spread in an unnatural way .

ID 20: Martin, Hans-Peter (DE)

This brings me to the second issue , that of the fundamental organisation of trade policy . It certainly has not become any easier to get the message across that what trade means to us , when it is properly organised , is increased prosperity , worldwide I might add . After Seattle and Davos , we have grown increasingly aware that we are dealing with irrational opponents of globalisation . It is all a matter of having the right rules . **What it comes down to is** fine-tuning , and to some extent , to information too . If only all those who do not have a good word to say about globalisation could recognise , for example , how strong Europe has already become in the sphere of foreign direct investments , as is evident from this report , or indeed in all kinds of other areas . What we need to do is set about convincing them . It is to be hoped that the Commission , in particular , will quickly get to grips with these fundamental issues , so that we can submit corresponding programmes setting out the basic principles , well in advance of 2005 and use them to win the public over . Mr President , I would like to thank Mrs Mann for her work

, but she has managed to make a totally technical report out of what is a rather political issue .

ID 21: Maaten (NL)

Mr President , rapporteur Bowe concluded that the conciliation procedure concerning the deliberate release into the environment of genetically modified organisms had a satisfactory outcome overall . The Liberal Group would agree with this , although naturally there is still room for improvement , for example regarding the protection of biodiversity , but these are matters to be revisited at a later date . The primary objective of the new directive is the safety of the environment and public health . It follows logically from this that although it may be acceptable to use GMOs , there must always be systematic , independent and in-depth research prior to the release , into the potential risks to the environment and to public health . **What is important in this respect is** that the directive introduces mandatory monitoring after the placing on the market of GMO products and a mandatory time limitation of maximum ten years for first-time consent . This will enable us to encourage research into and use of GMOs on the one hand , whilst still being able to monitor the situation . Comprehensive information promotes the consumer ' s freedom of choice . The consumer must be able to have absolute certainty as to whether a particular product does or does not contain GMOs . The only way to do this is through labelling which is the very model of clarity .

Error: Solbes (ES)

It is true that indicators should not be seen as some kind of inventory , of position-taking on specific policies . It is true that indicators are not goals in themselves , but are tools that should enable us to make progress and interpret reality more globally and accurately . Contrary to what some of you have said , it is important to have indicators what in themselves tell us the reality of our situation . There is no doubt at all that comparison with other models is useful . **What doubt is** there that comparing certain rates of technological penetration in the European Union and the United States , for instance , will give us a measure of where we are with regard to the most advanced country in these matters ? Making a partial comparison - only on certain things and not on the whole model - between the two economies may give rise to interpretations that are not always correct . In any case , when we are

talking of comparative indicators there is always a difficulty , which is that we often do not have sufficiently homogeneous indicators for the realities we are comparing to be revealed through these figures . Throughout the morning you also debated whether the number of indicators was excessive . It is true that cutting the number of indicators would make the report more visible ; in terms of public opinion it would make it possible to send out clearer and more direct messages .

ID 22: Rübig (DE)

No doubt , the Internet and electronic means can be used considerably more than they are currently . Debates can be followed live not only on TV , but via the Internet too . This is my counsel to the Council . Mr President , ladies and gentlemen , dialogue with citizens is one of the main issues for us on a daily basis and I would therefore like to know what the Council intends to do to bring the post-Nice process closer to our citizens . **What we could** do is set up our own chat rooms , for example on the Internet , where citizens could use a search engine to locate specific subjects and browse through subjects of personal interest . I also think it would be a good idea if we provided video streams of debates in Parliament , the Council and the Commission in each language , in order to give citizens an opportunity to become more involved in this dialogue . Do you think this might be something for the Swedish Presidency to focus on after the Lisbon Summit ? The honourable Member noted perhaps in this morning 's debate on the future of the Union that one of the many specific measures now being taken to stimulate increased debate is precisely the launch of a web page , which will be managed by the Commission , but to which the Council , the Member States , Parliament and all interested parties can make written contributions . I do not know whether it is possible to extend the venture by opening a chat room as well , as suggested by Mr Rübig .

ID 23: Plooij-van Gorsel (NL)

Madam President , my group understands all too well that this subject is of an extremely sensitive nature . The present resolution has indeed turned out to be rather elaborate and should focus on the rape of the women . I am very much of the opinion that this subject should be dealt with in the topical debate , for it was revealed only recently , last week , in fact , that women ' s rights have been violated not only in Africa , but in 23 countries across the world . In this light , we cannot just dismiss

this subject as marginal . **What we as Parliament should** say about this is not so much that it has happened - indeed , it happens in every society , irrespective of religion , both in the West and elsewhere - but that it is being concealed under the cloak of charity . For years , the existence of a problem was simply denied . I believe Parliament should make a statement on this . I repeat , once again , that the text which is before us contains elements which do not belong in this resolution ; we will therefore remove them so that it becomes an accurate resolution which deals with the problem of the violation of women ' s rights across the world by Catholic priests . I hope that I will be able to count on your support .

ID 24: Lamy (FR)

In the textile and agriculture sectors , developing countries often have comparatively large advantages , and there we are retaining tariff protection . In the primary processing sector we still have the combination of zero duty on imported raw materials and significant rates of duty on processed products , those rates corresponding to the degree to which those raw materials have been used . This is known as tariff escalation , and quite rightly , because this method of calculating our tariffs has the effect of discouraging processing on the spot in the country of origin . Then we also have certain tariff peaks which , despite the fact that we have made them less extreme - to a greater extent than they have done in the United States , for example - are still significant in some cases . **What the Commission is** proposing , then , is the updating of the GSP in order to respond to three concerns . First , there is the question of compensating for the erosion in preferential tariff margins which involves lowering the average tariff levels . Then there is the need to simplify the system for tariff modulation , according to how sensitive the products are . We have got rid of some categories . There were four categories before , whereas now there are only two .

ID 25: Laguiller (FR)

There are 15 regulations and 25 different types of compulsory statements on the invoicing of VAT , but what is unfair is the very existence of VAT , and not the way in which it is invoiced . Although we shall be voting against this report , it is not in order to oppose harmonisation , but in order to express our opposition to the very existence of value added tax , and , more generally , to any indirect tax on

consumption . It is a particularly unfair tax , because everyone has to pay it , including those who only earn a modest wage , even those who are living on unemployment benefit . The consumer becomes a tax payer simply by making a purchase , even if it is just a loaf of bread . **What is worse is** that VAT is not calculated according to the income of the tax payer . A billionaire will pay tax at exactly the same rate as an employee earning the lowest income . In a country such as France , VAT makes up almost three quarters of the government ' s revenue , in other words , twice the amount of tax on salaries . This means that it is the working people within the population , those on lower incomes and resources who are paying the greater share of taxes . It is unfair in itself , and all the more so because , with regard to State spending , on the other hand , there is a trend to increase spending to favour large employers and the wealthy , to the detriment of public services .

ID 26: Crowley

In Amendment No 19 there is a call for harmonisation of penalties . This is not something we should agree with . This matter should be left to the Member States because otherwise , as has already been seen , there would be differences in implementation of the penalties . Finally , under Recital 14 certain conditions with regard to the average working week are not being implemented . **What we are seeking is** decreased administrative burdens , a more balanced proposal and fairness for all . Mr President , Commissioner , I wish to begin by thanking the rapporteur for the work and efforts made in achieving a recommendation for second reading which is balanced and flexible and which may lead to the success of a conciliation which will probably not be easy . Neither is it easy to achieve the general objective of organising working time for people who carry out professional mobile road transport activities , because it is necessary to take account of the health and safety of drivers , as well as road safety and , therefore , collective safety . And because another objective must be to prevent unfair competition . I believe that the Directive must include self-employed workers .

ID 27: González Álvarez (ES)

In the other countries the civil protection service is more centralised . In any case , I think it is obvious that this mechanism will prove very useful in that it can effectively coordinate and mobilise all the resources we have available in Europe

for clear emergencies , as have occurred in recent years . I remember very well what happened in the Doñana National Park , when a pond of toxic waste burst its banks , flooded a river and a vast area of water meadows and destroyed the livelihoods of 5000 farmers . Therefore it is vital that there should be a rapid , effective mechanism of this kind . **What perhaps is** just as vital as this need for rapid communication and coordination is for citizens to be trained and educated to protect themselves . In Europe there are about five million volunteers - I was surprised at the number - who for no payment provide their services at any given moment when there is a disaster . Giving these people the slightest amount of training would be of great help in tackling these disasters . We just have to remember what happened with the Erika on the French coast and other disasters of this kind . I think the proposals put forward by Parliament are acceptable and improve this mechanism , and in future it will be very important that there should be a clear , practical mechanism , with a centre for the coordination of communications and resources for civil protection .

ID 28: Fischler (DE)

I should like to start by thanking the rapporteur , Mr Pérez Royo , for his report on the new fisheries protocol with the Comoros . I am delighted , Mr Pérez Royo , that you have given this proposal your full and firm support . The new protocol refers solely to tuna and makes provision - as already mentioned - for fishing opportunities for a total of 65 ships . The financial contribution paid in return will be EUR 350 000 per annum . **What is so gratifying is** that 60 % of this sum is to be used for targeted measures to develop the local fisheries sector in the Comoros , taking special account of small-scale fishing . A brief word on the proposed amendments . The Commission has no problem with the content of Amendments Nos 1 , 3 and 4 but considers them to be superfluous because it already complies with these requirements within the framework of the Interinstitutional Agreements , especially the Framework Agreement between the European Parliament and the Commission of 5 July last year . Unfortunately , I cannot agree to Amendment No 5. The principle which applies here is that no new mandate is required for new protocols negotiated because they are annexed to existing agreements .

ID 29: Fischler (DE)

Rather than refer to this in the text of the Council regulation , I would suggest that we proceed as follows : the Commission is prepared to write to the government of Comoros in order to convince it of the importance of this species and the problems connected with it . We shall then send a copy of this letter to the chairman of the Committee on Fisheries , Mr Varela . Finally , I cannot accept Amendment No 7. It is an integral part of our agreement policy and all negotiating guidelines state that financial compensation for fishing opportunities must be paid partly from the EU budget and partly by the shipowners . **What happens in practice is** that the Community pays the financial consideration to the third country in question and the shipowners obviously pay the licence fees themselves . Thank you very much , Commissioner . The debate is closed . The vote will take place at 6.30 p. m. As there are no more items on the agenda , I shall adjourn the session for fifteen minutes before the vote .

Error: Wurtz (FR)

I believe that these issues should be raised as part of the exchange of ideas that you are hoping to promote during your presidency . We have been repeatedly told , for example , that the eurozone was shielded from the major repercussions of the economic slowdown in the US . We must now admit that , unfortunately , this has not been the case . This is quite a serious misdiagnosis . **What sort of analysis is** being carried out ? What sort of lessons in economic and monetary policy must we learn from this , so as to avoid the European economy becoming entangled in the American financial bubble that is now about to burst over us ? I would reiterate that , over six years , there has been a nine-fold increase in the amount of European capital flowing to the United States which , last year , reached over USD 220 billion . There is another example that Mr Duisenberg himself sometimes uses - in contrast to the US Federal Reserve , which is required under its mandate to promote employment and growth , the European Central Bank is not required to deal with these problems , which are indeed at the heart of all of our concerns . Do the European citizens know this ?

ID 30: Miranda (PT)

I think that you must have not been paying attention , Mr President , when you said , just now , that I was the first to attack Mr Ribeiro e Castro . This is not true . In his own speech , which preceded mine , Mr Ribeiro e Castro referred to me in a completely unacceptable way and you said nothing about it , Mr President . As you will remember , he said that I have manipulated public opinion , that I have manipulated the press , that I have sought to use this Parliament , and he referred specifically to the fact that I am Chairman of the Committee on Development and Cooperation

. **What I said in my speech that gave Mr Ribeiro e Castro the pretext for ans wering in the way he did was** simply that some friends of UNITA , specifically Mr Ribeiro e Castro , had gone ahead with certain initiatives . Mr President , I did not mean any insult by this , because it is public knowledge and widely known that this party , to which Mr Ribeiro e Castro belongs , has clear , public and acknowledged links with UNITA . This was the precise tenor of what I said and nothing more ! That is why what was said ... (The President cut the speaker off)

ID 31: Pacheco Pereira (PT)

The problem has much to do both with hesitancy and weakness in the fight against terrorism , which manifest themselves in laxity towards activities of a terrorist nature , in the hope that terrorist acts would always be carried out in the country next door , or in the slow deterioration of methods of defence and security , police forces , information services and armed forces . European governments which thought that wars had ended once and for all and which often cut the financial resources available for defence and safety cannot , of course , talk loudly about terrorism . The second question concerns political awareness of the times in which we live . If we denounce what happened in New York and Washington merely as a criminal act , we will from the start be limiting the scope , the meaning and the effectiveness of the fight against terrorism . **What happened is** in reality an act of war , no doubt of a war different to previous wars but , unfortunately , all wars are different to previous wars . They are usually more deadly , affecting more civilians and not hesitating to use any means to massacre . They are increasingly total wars . To classify what happened as an act of war is not a mere question of semantics . It has had major implications , starting with the right of the nation or nations affected

to respond with military actions , if necessary , in relation to the country or countries shown to be responsible for supporting or carrying out terrorist acts .

ID 32: Marset Campos (ES)

Mr President , our group recognises the efforts made by Mr Brok in the Committee on Foreign Affairs , Human Rights , Common Security and Defence Policy , which has been a positive effort to reconcile the various contributions . However , we do not agree with the fundamental aspects of his report and , for this reason , we cannot support it with our vote . As an example , I will now briefly mention three of these aspects . Firstly , 11 September was an opportune moment for the European Union to demonstrate that it could play a positive , peaceful and reflective role with the United States , in order to find , in the International Criminal Tribunal and through International Law , a solution to the conflict . **What appeared to be taking place in this direction has** now been frustrated by the emergence of the Schröder - Blair - Chirac triumvirate which has missed this opportunity . Secondly , the report gives great importance to NATO , when we think that NATO works against the interests of the European Union . Lastly , it is very important that the European Union should play a role in the Middle East and in the Western Sahara , and we are also wasting this opportunity . Thank you very much . Mr President , entirely in line with the current international situation , the rapporteur , my fellow MEP Mr Brok , is of the opinion that the fight against international terrorism should become one of the European foreign and security policy ' s core tasks .

ID 33: Krarup (DA)

Two months ago , the United States sent Mr Prodi a list of 40 different decisions which , according to the United States Government , should be taken by the EU and the Member States in order to satisfy the United States : surveillance , control , arrest with no counsel for the defence or court hearing provided , and the handing over of suspects for legal proceedings in the United States , involving military courts and the death penalty . On the last point , I entirely agree with Mr Di Lello . We must protest most vigorously against the handing over of suspects in any form as long as there is the possibility of the death penalty ' s being carried out and as long as no guarantee can be given by the United States of its not being carried out .

It has been shameful to see the way in which the institutions of the EU have complied with demands that are also aimed at abolishing our concepts of justice . **What is at issue here is** not military technology but politics and the defence of the law . Mr President , the documents on terrorism are certainly notable , although I believe we should pay far greater attention to the dangerous , worrying , serious signs of anti-Semitism and aggression against Jewish institutions and figures , including religious ones , as shown by the extremely serious attack on the Chief Rabbi of Brussels . These are also very worrying signs in a climate of passive habituation to such acts by exponents of Islamic fundamentalism in all the countries of Europe . The European arrest warrant : what a great result for liberal Europe ! Giuseppe Mazzini and the revolutionaries who breathed life into 'Young Europe ' in 1840 will be turning in their graves at the thought of a Europe which before giving itself a democratic Constitution is already thinking of a European arrest warrant : necessary certainly for terrorist and criminal emergencies but certainly not for other areas .

ID 34: Busk (DA)

I will concentrate , then , on a few points I disagree about . I want to begin by saying thank you to Mr Stevenson who has talked in very clear terms about the experiences of the Committee on Fisheries ' delegation in Denmark and about how , in Denmark , it has been possible completely to remove the mystique from sand eel fishing , as well as to rebut the many assertions to the effect that it is industrial fishing that is destroying the food chain . We therefore need to state that there is now no scientific basis for saying that industrial fishing has a negative effect on the marine environment . Without a sound scientific basis , it is rash to want to cut back on industrial fishing , something which would have major consequences for jobs in the fisheries sector . **What we must** do , therefore , is to strive to obtain a broader and better scientific basis in this area too . Nor can I support item 9 , which is factually incorrect in as much as it would be particularly unreasonable not to use fishmeal and fish oil , which are products very rich in protein and which are of very great value . What is more , the European fishmeal industry has made very great strides towards developing a technique for eliminating dioxin . In other words , it would really be much healthier in the short term if we were to think in terms of using fishmeal to feed fish within aquacultures rather than , if I may say so , in terms of

their receiving it through the normal food chain out in the oceans where , right now , the dioxin content is unfortunately higher than we would wish . In this context , it is important to note that dioxin does not come naturally from the sea and is not found naturally in fish , but is a form of pollution that comes from the land .

ID 35: Lambert

I would appeal to the Council and the Commission to be wary about implementing and establishing too many targets if those targets are clearly not always going to be met . My group has long been critical of the Lisbon process , not least because of its unquestioning belief in economic growth per se , with no attempt at any qualitative evaluation of it at all , yet we still cling to this as a key indicator of economic wellbeing and assume that that means social wellbeing as well . If I have to fence my house , put up burglar alarms , catches on the windows , etc. , it may be good for the economy , but it is not good for my quality of life . We also criticise the ambition about being the most competitive knowledge-based economy , on the basis that in any competition , there are going to be losers , both within the European Union and globally . **What we are looking at with Lisbon is** that we have to beware that social cohesion , which was another of the goals , does not become a casualty of our search for competitiveness . We are also very much aware that Lisbon is not enough . Gothenburg added the environment and the promise of Spring summits , which Barcelona is , as sustainability summits . In my group 's view , all summits should be about sustainability , but I would settle for at least one a year as a start because the environment underpins our economic development , and if you do not have sustainability , you can kiss goodbye to the stability pact . Mr Bullmann 's original report gave us a comprehensive reminder of a number of issues concerning employment , social cohesion and the importance of sustainability , but I think we saw considerable tension introduced with that report , with certain EMAC resolutions ; not least , paragraph 25 and its push for liberalisation with no qualitative evaluation on the social and environmental side whatsoever , and paragraph 36 , which tells us that the European Union did a very good job at Doha in our push for the liberalisation of world trade as the catalyst for international growth .

ID 36: Ettl (PSE).

The Directive on prospectuses should make the market easy to understand and make products transparent . We are in absolute agreement on that . Likewise , investors need serious information . Cases like Enron or Maxwell must not be allowed to happen again . **What is clear is** that this directive cannot of course prevent fraudulent descriptions of securities , but this directive and all the accompanying measures that we have already dealt with and are already available should help to make sure that in future we are dealing chiefly with serious products . My main criticism of the report before us , Mr Huhne , is that you as rapporteur have addressed only , or chiefly , big investors . However , the market is flourishing in the private sector , for small investors , and there are various quite different additional issues when it comes to SMEs . For example , for SMEs we of course need an attractive capital market and cheap equity borrowing , and our prime objective must be more security and quality for investors buying securities . Furthermore , it is absolutely vital that the scope of the obligation to publish a prospectus in Europe should be extended so as to achieve greater market transparency , and that is not yet included in the first reading .

ID 37: Ayuso González (PPE-DE).

The rapporteur has already described the importance of the fruit and vegetable sector for the countries of southern Europe , so there is no need for me to do so . Almost two years ago , the Council requested the Commission to undertake a specific assessment of the situation of the nuts sector in the framework of the report on the operation of the COM in fruit and vegetables . This problem has yet to be finally resolved . We are still trying to provide a remedy in extending the improvement plans . **What is actually required is** a final and immediately applicable definition , along with the implementation of support mechanisms to replace the present improvement programmes as they expire . The Commission is adamant on resolving the extensions through this draft Regulation . A reduction in Community cofinancing is involved , however . In addition , aid to hazelnuts is proposed , but only for farmers not eligible for the extension . The European Commission 's proposal to extend the improvement plans for a second year is positive .

Error: Rod (Verts/ALE). (FR)

Madam President , ladies and gentlemen , I shall come straight to the point . We must quite simply cancel the debts of highly indebted poor countries and put in place an arbitration procedure for intermediary countries that are in crisis , such as Argentina . Most of these debts are illegitimate , as they were arranged by corrupt , even dictatorial governments , and have , in fact , never been used to benefit the population . The total amount of third-world debt has already been repaid six times over in interest . **What a paradox this is !** Today , the debt repayments made by the countries of the south are higher than the development aid provided by the north . Having pillaged the raw materials of the south at the lowest possible price , the north is now benefiting from this financial flux and is maintaining its de facto domination , which consequently makes the problem of poverty worse . We must , therefore , cancel this debt . However , the money that is saved from doing this must be reinvested , not in arms or in anything else , but in social budgets that will first and foremost improve public services , health and education .

ID 38: Brie (GUE/NGL). (DE)

This may well be true of the bananas issue , but if we look at the complexity of the trend over recent months - the attacks on the Chemical Weapons Convention , the obstructing of a monitoring organisation for biological weapons , the withdrawal from the ABM Treaty , the threat of withdrawal from the Outer Space Treaty and of renunciation of the Test Ban Treaty , the threat to the non-proliferation regime , the failure to support the Landmine Convention , and Kyoto , to name just a few - it is apparent that there are major problems and that issues of principle are at stake here . I think that the International Criminal Court is an even more fundamental issue in some respects . Mrs van der Laan has just said that American troops fought for freedom in Europe in the First and Second World Wars . I do not want to generalise here - for there are other examples in American history - but I do not entirely agree with her view . **What is at stake here is** a fundamental principle which is also enshrined in American history , namely the principle of common values , which has been underlined here and is now being called into question . Jean-Jacques Rousseau described the role of the law as follows : " In the relationship between the weak and the strong , it is liberty that oppresses and the law that liberates . " A law which does not apply to the strong is extremely problematical . I therefore fully endorse the

draft resolution on behalf of my group and would ask the Members of this House to vote for our amendment as well . Mr President , a few weeks ago , people still joked that the United States planned to release American citizens or soldiers - by force , if necessary - from the cells of the International Criminal Court in The Hague.

ID 39: Caudron (NI). (FR)

Since this is the case , I would also like to reiterate just as firmly that , in addition to the firm proposals made by the Commission and those by the rapporteur , the important , essential , even vital thing to do is to put employment back at the heart of everything , and at each and every level . Whilst employment provides all citizens with a purpose , unemployment , on the other hand , can be devastating , isolating and very often destructive . In a world where employment is too often considered to be 'an adjustment variable of so-called efficiency and of the very real quest for profit ? , it is high time that we re-established our priorities and reaffirmed at all levels that full employment is our number-one goal . From now on , and because , naturally , there is no miracle cure in the field of employment and since words alone are not enough , we must combine , increase and diversify the initiatives we take at all levels in order to achieve this goal . **What we must** do , of course , is take initiatives and introduce regulations at world level . At European level , we need to pursue an innovative industrial policy , a research policy and a strong social policy . We must also implement national social policies which put employment above all other considerations . And developments in recent months have meant that many European countries are further away from reaching this goal . We must , at long last , devise local policies that involve businesses , local government , associations , trade unions and citizens .

ID 40: De Palacio (ES)

There is no privatisation here . Air traffic control is a natural monopoly which must be regulated . There is a Court of Justice judgement which clearly establishes that this control is outside the competition rules . It is also laid down in the Treaties that the specific carrying out of that activity and the formula adopted for carrying it out should fall to each Member State . **What we are not** going to do is change the Treaty by means of a Directive . Ladies and gentlemen , we should keep in mind

what our limitations are . Clearly it is a natural monopoly and clearly the Court of Justice has given its opinion and nobody intends to change the status quo . On the contrary , what we are proposing is to strengthen the situation of the public service and the common Community framework for this management of air traffic control . Civil-military .

Error: ?aramanou (PSE). (EL)

The shockwaves created by Amina Lawal 's case have just reached Europe ; let us take action to prevent further shockwaves in the future . Mr President , Commissioner , I wish to express in the strongest terms my horror and disgust at what has been happening over the last two years in the northern provinces of Nigeria , where Islamic fundamentalists have imposed Sharia law over and above the laws of the country and international law . I wonder , how can women - not men of course - be condemned to death by stoning for adultery in a country which has ratified the UN treaty on eliminating all forms of discrimination against women , in a country which has ratified the treaty against torture and the international covenant on civil and political rights , in a country with which the European Union has close ties under the Cotonou agreement ? How come the federal government of Nigeria is unable to make the Islamic fundamentalists respect the very constitution of the country ? **What is the point of having a president if he is** unable to guarantee the fundamental freedoms and human rights of his citizens ? I find it impossible to believe , Commissioner Patten , that intolerance , obscurantism and misogyny can triumph over reason and human values . I cannot accept that the Union does not have ways and means of preventing these criminal practices against women and that , in this specific case , we are unable to force the federal government of Nigeria to apply the law throughout its territory . We need to send out a very strong message from this House today both to Nigeria and to any other country in which crimes are being committed against women because , as we know from the press , sentences of death by stoning are also passed in Iran . We need to tell fundamentalists the world over that no tradition or culture can sanction the violation of the rights of half of mankind , which is why we are calling here and now for Amina Lawal to be released .

ID 41: Souchet (NI). (FR)

Unilaterally waging a pre-emptive war against a sovereign State would set an extremely dangerous precedent that could be invoked in future by any country in order to try to solve its problems , for example India or Pakistan with regard to Kashmir . Secondly , we must state that such a war could only be decided upon should Iraq refuse to implement the resolutions of the Security Council . The mandate given to the inspectors must therefore leave no room for ambiguity , but we must not speculate in advance over the failure of the inspections . That would amount to denying the remarkably efficient work carried out by inspectors from the United Nations and the IAEA between 1991 and 1998 and to renouncing any future disarmament control missions . **What is despicable is** the inertia of the international community in allowing a black hole of four years to follow the expulsion of inspectors from Iraq , thus enabling Iraq to increase its capability . Naturally , the Security Council , in order to be effective , must not automatically exclude any hypotheses . Automatically excluding the use of force under any circumstances , as suggested , for example , by the German Government , would weaken the position of the international community . Lastly , we must at all costs prevent inappropriate action in Iraq from making the international fight against Islamic terrorism more difficult , as this is a priority . Waging a pre-emptive war , however , without Iraq having refused to apply the resolutions of the Security Council , could doubly compromise the essential objective of dismantling the Islamic terrorist networks .

ID 42: Berthu (NI) (FR)

This vote , which is fortunately for consultation purposes only under current rules , could nevertheless politically weaken the position of the Council , which has for some time been trying to stem the tide of overliberal Commission proposals . Following yesterday 's debate , Commissioner Vitorino , without contesting all my arguments on this subject , confined himself to claiming that the Commission was not proposing to establish all the elements of the subsidiary protection system . There is indeed already supplementary protection , in addition to the Geneva Convention , in some countries , for example territorial asylum in France . The scope of these extensions , however , is small . **What I would reproach the Commission for is** introducing this system at

Community level and , what is more , establishing all the necessary conditions for it to be extended . Once again , the Commission is playing a destructive role , which should lead us to consider the relationship between the European institutions in general . - (DA) We have today voted in favour of Mrs Lambert 's report because , in many areas , it improves upon the minimum standards that , under the auspices of the EU , an attempt is now unfortunately being made to establish when it comes to refugees and persons with subsidiary refugee status . The report seeks to broaden the range of people to whom the standards would apply and to improve conditions and rights . For example , the Commission 's proposal relates exclusively to third country nationals and stateless persons , while EU citizens are not covered by it .

Error: Schmid, Gerhard (PSE). (DE)

There were two reactions to this . Some said that this proved that the interception systems were useless and that they ought to be abolished , while others wanted to put the secret services and their activities out to public tender . Both reactions are wrong ! The majority of this House was convinced that strategic telecommunications controls could be a useful instrument for intelligence services , provided that legal safeguards and a proper system of checks and balances were in place . **What happened on 11 September does not** in any way change our demands for clear legal bases , for parliamentary control and for the provisions of the European Convention on Human Rights to be complied with . Of the range of demands that we made , I should like to highlight the essential aspects for whose implementation the Commission is responsible , and will not therefore mention anything in the field of external policy or at international level . As Commissioner Liikanen stated , the Commission has done a considerable amount of work on IT security . If you take a closer look you discover that these are initiatives that would have been necessary in any case because of e-commerce and of the need to support the IT industry . Parliament had made precise demands , which - at least this is my impression , Commissioner - have not been implemented in full .

ID 43: Honeyball (PSE).

We think it is very valuable , so I would certainly be concerned if anything happened to detract from the programme and make it more difficult for certain Member States to take part in it . The programme has much to offer . It has introduced exchanges

of officials ; it has introduced seminars on tax issues of common interest ; it has provided multilateral control exercises , it has developed professional training , such as audit skills ; it has improved language training and it has maintained and developed communication and information exchange systems . That is all very good stuff and to be welcomed , continued and improved upon . **What we are always trying to do in these sort of situations is** improve the way that the systems work and get things to work better . Certainly , that has been one of the achievements of the Fiscalis programme . Therefore , it is to be regretted , as the Commissioner said , that we are seeing a cut in the budget . All we can hope is that the budget , as it now stands , will be adequate to take the programme forward . So , on the whole , I welcome the common position and the fact that it looks as if we are going to be able to achieve an agreement and get the programme extended .

ID 44: Ettl (PSE).

f you indeed proceed to act on the basis of Article 202 , should the costs of this operation not be covered by the Council rather than the Commission , as has been the case to date ? Perhaps it will be possible to give an answer to this question as well . Mr President , I would first like to thank Mr Pronk for pointing out that Article 202 is by no means a legislative soft option , and it does not make life easy for the Council or the Commission . I would also like to thank the Commissioner for her clear statement about the arrangements for the tripartite social summit , and to thank the Danish Presidency for attempting to accommodate us . **What I do not** understand as the nominated rapporteur , however , is that at a moment when we are anxious to tackle employment policy and growth in an active way , we are wasting time . The intention was to begin making arrangements for this standing tripartite social summit now , before the spring summit , so that the social partners could start work straight away . The approach we have now adopted means that we are wasting time again , possibly a whole year , at a point when we want to play an active role on employment issues . The Committee on Employment and Social Affairs has virtually been neutralised - we do not have an appropriate mechanism here . This means that the social dialogue will not be particularly mobilised as a fundamental mechanism for the social partners to be able to - or in fact be obliged to - achieve something practice-related .

ID 45: Hulthén (PSE). (SV)

It was not just one country but a number that did so , and they also expressed opinions as to what costs the situation would entail . Even though we in the EU cannot accept responsibility for all these forms of climate change , we must nonetheless regard ourselves as one of the parties which , together with the rest of the industrialised world , has contributed most to creating the climate change now under way . We must adopt a clearer role in helping the developing countries to protect themselves against climate change . We must , of course , also help them find ways of making progress in terms of development that are not merely a case of taking the route that we ourselves do not consider to have been entirely successful . **What is perhaps most important is** that , in spite of everything , the EU should continue to push for something 's happening after 2012 and that we should not give up , in spite of the surrounding world 's actually wanting something different . That is perhaps the most important message to have come out of the New Delhi conference . Mr President , Commissioner , I wish to start by congratulating the European Parliament delegation to the New Delhi Conference and I would single out Mrs Garcia-Orcoyen Tormo , who led the delegation . I am sorry that once again the Commission and the Council did not allow Parliament 's delegation to participate in the EU coordination meetings . We knew , even before the Conference started , that the outcome would be extremely hard to achieve : this Conference was designed to prepare for the second phase of the Kyoto Protocol , whereas the political priority is still , unfortunately , to ensure that the Kyoto Protocol enters into force in order for the first phase to begin .

ID 46: Barón Crespo (PSE). (ES)

Mr President-in-Office of the Council , Commissioner , I have raised this oral question on behalf of my group in order to bring once again to this House , and therefore to a public and transparent debate , a fundamental issue which is a constitutional one . At a time when in the Convention we are considering reforms of the Commission , the Council and all the institutions , being able to fulfil our mandate with dignity , honour and equality as European citizens is an essential issue which we have been working on for a long time . I would add something else : we must resolve this issue during this legislature , before it comes to an end , given the political importance it has . I tabled my question in the quest for greater support and

consensus within the European Parliament because I believe it is necessary and I must say that my group believes that this is an issue which must be defined with the greatest possible transparency , both with regard to the constitutional aspects of the Statute and the rules which we have to lay down for ourselves . **What I regret at this point is** that it seems that , in seeking the greatest possible agreement , disagreements have been highlighted . I have been faced with an open and systematic accusation ; this morning , in a press conference , three parliamentary group presidents have publicly accused the Socialist Group of blocking the Statute . As the President is well aware , it was I who proposed the amendment to the de Palacio report which was approved by 455 votes . It was I who proposed , and this is in the joint resolution of the Liberal Group as a recital , that a group of eminent people had to be created , and Mr Haarder is well aware of this , and I proposed its membership , beginning with Mr Ersbøl . This is what I have done on behalf of the Socialist Group .

ID 47: Paulsen (ELDR) (SV)

Mr President , I would like to praise Commissioner Fischler for his insightful comments when introducing this debate , for we know that the environmental situation faces catastrophe when it comes to fishing and sustainability . This does not just apply to cod and white fish . All the scientists are afraid that we are fishing most of our fish species to extinction . We have to remember that , without fish , there would be no fishermen , there would be no economy and there would be no fisheries policy . **What we are also in the process of losing is** a very important coastal and fishing culture in almost all European countries , which is possibly the worst catastrophe as far as we are concerned . We cannot continue fishing in this way , however . We bear responsibility not only for those living today but also for the future of our children and our grandchildren . In its decision , the Committee on the Environment , Public Health and Consumer Policy also addressed the fact that we rich Europeans buy - for considerable sums it is true , but still for small change - fishing rights from poorer countries . What are we really doing there ?

ID 48: Verheugen (DE)

The political conditions must first be complied with fully and unequivocally , and only then can a decision be made about whether to begin negotiations . (Applause

) The Commission will not shirk its responsibilities as regards the report and the recommendation . Let me make it abundantly clear that , as far as these reports are concerned , we have developed standards , procedures , and methods in the course of recent years , and it is with those same standards , procedures , and methods that we will work . **What is most important is** that the recommendation that then has to be given should be based on the report 's conclusions . It will not happen the other way around . We will not have a political objective and already know what recommendation we will make , with the report then having to be framed accordingly . Instead , the report will be fair , objective and neutral . That is an opportunity for Turkey , and I also believe that Turkey is capable of meeting these requirements .

ID 49: Simitis (EL)

The presidency 's programme has not been planned solely to meet the challenge of the ongoing development of Europe ; it has also been planned to meet the challenge posed by today 's international economic climate , the global recession and all the sources of insecurity waiting to ambush our societies : the lack of competitiveness and stability in the economy , unemployment , social exclusion and so on and so forth . We need to respond to this insecurity with decisive action , to hit at the heart of individual and collective insecurity and to create a more rational , a fairer and freer living environment which offers everyone more opportunity . At the same time , we need to turn our attention to the international crises that create insecurity . International crises which originate in the fragile states on the fringes of the Union , international crises rooted in the Middle East , international crises caused by international terrorism . **What we need is** a Europe which has a constant presence and speaks with one clear voice on the international stage . Ladies and gentlemen , under the decisions taken in Seville , we were required to plan the Greek Presidency in collaboration with the next presidency , the Italian Presidency , so that an annual operational action programme could be formulated . We did precisely that and I should like to comment on our five main sets of priorities . It goes without saying that our first priority post Copenhagen is enlargement . We need to continue with all the basic , procedural arrangements so that the accession treaties can be signed in Athens on 16 April .

Error: Brok (PPE-DE) (DE)

Baroness Nicholson and I were in an Iranian camp for Iraqi refugees , and I have seen how people had to live there , having been driven from their homes and tormented by Saddam Hussein 's chemical weapons . The depiction of Saddam Hussein as someone who represents no real danger does not strike me as credible . Ladies and gentlemen , we should also be clear in our own minds about the real menace of weapons of mass destruction when they are in the hands of people such as Saddam Hussein , particularly if he is to emerge from this conflict as the victor , with all the resulting effects on the region 's morale . We should also be stating what is to happen once the war is over . **What form is** political reconstruction to take ? For how long will Western troops have to remain there ? To what extent does this relate to the creation of a new order in the region as a whole , what sort of new order will that be , and at what cost ? To date , I have heard no answer to these questions , and I believe that if you are going to go into something , you have to think about how you are going to get out again . Mr President , Mr Solana , Mr Vice-President of the Commission , I will begin with a quotation , one which sums up like no other statement our position on the war against Iraq : 'A preventive war is an act of aggression , and cannot be described as a just war in self-defence .

Error: Fiebiger (GUE/NGL). (DE)

It is not clear what sort of permanent and comprehensive body of Europe-wide legislation on non-commercial matters might be able to maintain the balancing act between , on the one hand , the maintenance and improvement of European agriculture 's competitive position on world markets and , on the other hand , the protection of insufficiently competitive agriculture at a time when it is being made more multifunctional for the benefit of society . My mind is quite open as to whether the European agricultural model , combining multifunctionality with a policy of subsidies , can be implemented with any international legitimacy . The great danger is already present that this will prove no long-lasting protection and that the abandonment of European subsidy policy will then begin in earnest , because there will as yet be no political majorities , and where they do exist , they will be compromises . On the other hand , the WTO 's fundamental categories do not include issues of rural development , environmental protection and animal welfare . **What is true of enlargement must** also be true of the WTO negotiations , the

principle being that nobody should be any worse off . The situation before the negotiations and after them will be considered in that light , so we can look forward to the result with some excitement . Mr President , Commissioner , agriculture will certainly be one of the most sensitive issues at Cancun . When all is said and done , agriculture represents an economic and social market framework the countries of the Southern hemisphere can only dream of . You are mandated to bear the European Union 's great responsibility in this field .

ID 50: Bullmann (PSE). (DE)

In a situation such as this , a great deal of responsibility rests upon your shoulders , but there is only one mistake you can make , a very serious one , and that would be if you were to allow your courage to fail you - the courage to , for once , push to one side the declarations prepared by the many bureaucracies ; the courage to distance yourself to some degree from the anaemic statements , all couched in the same language ; the courage to engage in real discussion among yourselves of the real conditions under which the people of the European Union live . We know from former Presidents of the Council that finding the courage to break with ritual is perhaps the hardest thing of all . It is not simple . Let me give two reasons why I think it essential that you summon up the courage to do this . **What we learn from an unvarnished depiction of the situation is** that investment , both private and public , in Europe is at a low point . We have to take especial note of the fact that public-sector investment is collapsing in those economies on which a major part of our economic development depends . This is where ritual invocation of the Stability and Growth Pact is not enough . When will we at last affirm our belief in the golden rule and put fresh wind and impetus behind increased investment in Europe ? I , for one , want to hear no more from Members of this House who ritually affirm the importance of small and medium-sized enterprises without at the same time stressing the link with public investment .

ID 51: Stauner (PPE-DE). (DE)

I need only mention the most recent goings on in the European Statistical Office , EUROSTAT . For the most part , national public prosecutors cannot cope . But hanging the small fry and letting the big fish get away is having a devastating effect on European citizens ' confidence in the European institutions . I therefore appeal

to the Council and the Convention : we do not need any more green papers . **What we need is** a clear legal basis that clearly defines the task to be performed . Then there will be no more room for objections from individual Member States . This first step must be taken now with the revision of the treaties and eastwards enlargement . If we succeed , this institution will be linked inseparably to Mrs Theato 's efforts , and I expressly thank her here once again for her persistent efforts . Mr President , today we have an open market within the European Union , but that means that the market is also open to fraudsters .

ID 52: Yiannitsis (EL)

The meaning can sometimes vary , depending on the language . Mr Yiannitsis may reply if he wishes to do so . I do not know if there was some misunderstanding . If there was , I am very sorry . **What I understood from the translation was** that the honourable Member commented on why , when I am talking into the microphone , I do not look at the person who asked the question and to whom the reply is addressed . Because , quite simply , when the person who asked the question is over there , I cannot see him . I am very sorry , but that is what I understood from the translation . As far as the question of exploiting deposits and natural resources is concerned , the Council , precisely because this stage is a very delicate stage in the negotiations , does not consider it advisable for activities such as these to be furthered . As I explained , Question No 13 was deemed inadmissible pursuant to the Rules of Procedure .

Error: Karas (PPE-DE). (DE)

In all events , the honourable Member will have observed the discussions held recently , which are also taking place within the framework of the Convention , on the possible extension of qualified majority voting , in which case there may be a different arrangement here too which will give more desirable and more positive results . Even if you say , Mr President-in-Office of the Council , that the Council cannot be expected to change its stance overnight , I do nonetheless believe that one can expect it to be willing to change a stance that causes problems of this sort . Our twenty-five different tax systems result in distortions of competition in the internal market ; small and medium-sized businesses are put at a disadvantage , particularly when operating across borders ; and , of course , unanimous voting in the Council

on tax matters creates problems when it comes to strengthening the internal market and the European economy . So let me again ask you what initiative the Council would take in order to remove the disadvantages to small and medium-sized businesses resulting from differing tax systems and to support the internal market as a whole ? **What initiatives have been** taken in the Convention by the Member States in order to do away with the requirement for unanimity on matters affecting the single market ? The honourable Member is talking about structural problems on the internal market and so on . I should like to point out that , in principle , every enterprise in any country of the European Union faces for the most part a single tax system , not 25 , the tax system of the country in which it trades . Consequently , there is no problem of a small enterprise facing 25 or 15 different tax systems and , consequently , of being oppressed or foundering , in contrast to the potential of a large enterprise . Secondly , you have to look at the potential for a small enterprise to extend to other markets and , even more so , to the internal European market .

ID 53: Rübig (PPE-DE). (DE)

Not only , as they did before , can they differentiate quantities , but now also in terms of quality and , in future , they will be able to do so as regards prices . I believe that one tremendous thing we have been able to achieve together has been with regard to labelling , in that public utilities will , in future , be under an obligation to indicate the source of the electricity , which will in future be independently monitored by the Commission , with the establishment of a group of European regulatory authorities which will share their experience with one another and thereby promote competition , to the benefit of consumers and of Europe 's citizens . The fact is that competition means service , and that is what the public want ; they want service and freedom of choice . In future the mix of energy sources will have to appear on the bill every year . **What that means is** , quite simply , that I , the consumer , will in future - or at least after 1 July 2007 - have the right to choose an electricity company , 100 % of whose electricity is generated from hydropower . I think that is a great leap forward for all of us , and that , in future , greater transparency will result from this as a matter of course . Energy imports will have to be monitored by the Member States , and their sources will have to be certified . Ultimately , we regard the full application of Community law as having most especial priority . We believe that the decommissioning funds , together with the

interest they yield , should be applied only to their original purpose , so that the costs must be borne by the form of electricity generation from which they result .

ID 54: Varela Suanzes-Carpegna (PPE-DE). (ES)

Everyone is looking after number one , and that is not what we want to see . I would like to congratulate the three rapporteurs , or rather the four , I would like to congratulate Mr Ó Neachtain , because he produced the report - Mr Stevenson 's name now only appears as chairman , despite the fact that the amendments presented to the plenary come from the UEN Group , although they have also been signed by Members with national interests . I will say nothing about the report by Mr Fava since we are all going to accept it and I believe there is little controversy about it . With regard to the reports by Mr Hudghton and Mr Stevenson , I would like to say that I support what has emerged from the Committee on Fisheries , which is our specialised and competent committee . **What subsequently emerges from the politics in the plenary is**another issue . We support Mr Hudghton 's report . I would simply like to say that on the issue of the regional consultative committees , I agree with him , that they are consultative . We must listen to the regions , we must listen to the sectors . We have said this in Parliament and it has been said in the Council , but of course Parliament and the Council will then have the final word , because consultations are obligatory , but there is a common policy and common European bodies which must take these decisions after listening to the sectors in all regions .

ID 55: Yiannitsis (EL)

Whereas the Council 's contacts are to a great extent with the government of the United States , Parliament can play a vital role by reinforcing its dialogue with the members of Congress , in the aim of promoting an understanding of the concerns and priorities of the peoples of the European Union . The Council is not authorised to dictate to civil society the role which it can play in this dialogue . However , it has encouraged the development of the four specialist dialogues and maintains the view that , together with the numerous networks of universities , institutes , laboratories , ideas and so on , they can make an important contribution . No more cooperation frameworks are needed . **What is needed in the dialogue with the United States is** for each side to be

carefully informed of the other side 's opinions and mutual action . . Madam President , there are a number of interesting questions framed by Mr Brok which hint at concerns we should try to address about the good health of our current dialogue with the United States . Those on both sides of the Atlantic who are already engaged in the intensive preparations for next month 's EU-US summit to which the Presidency referred and in finalising an impressive list of deliverables , should , I believe , be able to reassure the honourable Member . That we are emerging from a period of strain in the transatlantic relationship is not in dispute .

ID 56: Van Velzen (PPE-DE). (NL)

A successful outcome for the Doha Development Round remains a key factor in promoting worldwide economic growth , in order to strengthen multilateralism and Global Governance . The Group of the European People 's Party (Christian Democrats) and European Democrats supports the general approach with regard to the negotiations as laid down in the Council 's mandate for the third ministerial WTO Conference in Seattle . We would like to urge all WTO members to take the necessary enhancing decisions in Cancun in order to bring the Single Undertaking , the topics of that Round , to a successful close within the agreed deadlines . The political will displayed by the Member States during the ministerial OECD meeting at the end of April and the G8 summit in Evian is said to be crucial when it comes to making a success of the conference in Cancun and the trade round . **What is important now is** that we want to see action rather than words , and that the right negotiating climate should be created . Over the past three months , we have not seen a great deal of progress in the WTO negotiations . Many target dates for dealing with specific topics have not been met and are thus , unfortunately , on the agenda in Cancun , which is , in consequence , already threatening to become overloaded . Needless to say , we welcome in this framework the agreement that the European Union reached in the Council last week concerning the reforms of its agricultural policy , a result on which we would particularly congratulate Commissioner Fischler . We have good reason for endorsing what the Commissioner has said .

ID 57: Sandbæk (EDD). (DA)

Mrs McNally is quite right in saying that this is not the time for adding new topics to the agenda that take account neither of the developing countries nor of the environment . This would derail the debate on those topics concerned with promoting the objective of sustainable development . This is an objective that , together with free and fair trade and the eradication of poverty , is incorporated into the EU 's new draft Constitution . The EU now has a unique opportunity to demonstrate that the Constitution is not just a paper tiger . **What the EU should** focus upon is ensuring that every country has its say in the negotiations and not only , as is usually the case , the rich and privileged countries that will take care of their own interests . Cancun must result in practical progress for the developing countries and show that there is a real willingness on the part of the rich countries to prioritise the fight against poverty . Finally , it must at long last be ensured that governments do not have a monopoly on negotiating and implementing WTO agreements , but that a democratically elected assembly is set up . Mr President , if negotiations are properly conducted , there is give and take . If Europe receives the measure with which it has already given , it ought therefore to get a lot in Cancun .

ID 58: Modrow (GUE/NGL). (DE)

It is undisputed that the EU spends substantial sums of money on development assistance and makes every effort to conclude a variety of partnership and cooperation agreements in the different regions of the world , for both sides ' benefit . What is also undisputed is that despite all these efforts , poverty in the world has increased , especially during the last decade , and there appears to be no imminent prospect of any change in this trend . This is especially worrying in light of the fact that this rising poverty is one of the sources of terrorism . Parliament has before it a number of reports covering extremely important aspects of development policy . **What is at issue is** no more and no less than the use of increasingly scarce global resources . Today , wars are still being fought over oil , as in the Gulf , but violent conflicts are already emerging on the horizon over water . The USA and other industrial powers declare those areas of the developing world where there is oil and gas and other strategically important resources to be part of their sphere of interest , which apparently even gives them the right to wage war , but it is primarily among the developing countries that water is a problem - either because the resources are

inadequate or because access to water is denied . There is still time to prevent the impending catastrophe with a careful strategy and targeted expenditure . Mr Lannoye 's report identifies possible constructive approaches which deserve to be given greater attention .

Error: Deva (PPE-DE).

Mr President , I stand here tonight conscious that in Cancún the Commissioner and others will have to battle to protect very poor people . I would like you , Mr President , to count to ten . When you end that count , 80 people in the world will have died of starvation . Every second , eight people die of malnutrition . **What is it that these people can** do to make all of us better off ? The only thing they know they can do is to grow more food . But the one thing we prevent them from doing is to grow food that they can export to us . Because we want to protect our cows and our farmers and our industry , we give more money to a cow each day than 600 million people have to live on . We give two dollars a day to a cow .

Error: Van Dam (EDD). (NL)

I must also comment on the management of the budget . It concerns us that expenditure on audits has fallen by 6.4 % in the common agricultural policy . This reduction is unwise , given the problems surrounding the management of this policy and the intensity of manpower required for proper control of agricultural expenditure . This spring the European Court of Auditors presented a report on support for the so-called 'problem areas ' . **What lessons has** the Commission learned from this ? Is it , for example , willing to tighten up the vague definition of 'good agricultural practices ' ? Finally , according to the people involved , the fraud at Eurostat is partly related to the limited resources the European Commission releases for proper statistics . Better cooperation between Eurostat and the national statistical agencies is certainly to be desired . Eurostat needs more independence for this , so that the impartiality and scientific objectivity of the statistics continues to be ensured .

Error: Grosch (PPE-DE). (DE)

Again , the answer is no . And does liberalisation mean less safety ? Not at all , as I believe is very clearly illustrated in Mr Sterckx s report . Britain is not a good

example for us , and no one in this House would want to follow it . **What we have tabled here relates to the very thing that was** not done in Britain , namely proper preparation of the liberalisation process . And let me say to the Members from Belgium and France that jobs are already being lost at the present time . In my own country of Belgium , for example , the railways share of the transport markets is falling ; in ten years the number of private sidings has fallen to a third of its former level ; this means that the rail industry has not furnished proof of its efficiency , and as a result of this it has been gradually shedding jobs . Anyone who warns us that jobs will be lost and forgets that they are already being lost now , when the railways are still in the public sector , has not , to my mind , assessed the situation fairly and objectively . We have to grasp the nettle in our own countries too and acknowledge that our governments have been underfunding the railways and that we have not provided our rail operators with the resources they would need to organise tomorrow s large-scale rail network .

Error: Karas (PPE-DE). (DE)

Mr President , Commissioner Bolkestein , I would like to thank you for your detailed reply . I note if I understood you correctly that the Commission will , in its proposal for a directive , consider all of the points and demands I made in my question with the exception of the area of collateral , where the process for forming an opinion has not yet been concluded . I would like to ask you , therefore , what consequences will result from postponing the timetable for the Basel Committee to make a decision ? You say that you will submit your draft directive immediately afterwards ; in that case , it is likely to be autumn 2004 and that leaves a relatively tight timeframe for debates in Parliament and with the Council and a very tight timeframe for a preparatory phase for businesses before it enters into force at the end of 2006. **What are the consequences of the new agreement in the Basel Committee and the fact that the timetable has** been put back by almost a year because of the Committee s hesitancy ? . The Commission , as Mr Karas knows , is keen to stick to the original timetable . It is true that differing opinions on the other side of the ocean with respect to expected loss and unexpected loss have caused a small postponement of a few months . This means that the Commission will not finalise its proposal until around the middle of next year .

ID 59: Raschhofer (NI). (DE)

Europe s governments may well not have made any headway , but they affirm that they are heading in the right direction . The German Federal Chancellor , Mr Schröder , allows the French President Chirac to represent him . In Europe , we know that nothing can be done without Paris and Berlin , but was it really necessary to put on such a show of strength to deliver a rebuff to all those who warn of a Franco-German directorate ? Finally , there is the growth initiative , with a lot of paper and no action ever since the Essen resolution as long ago , let me emphasise , as 1994. **What this means is** that a Quick Start programme is to be put together in time for the December summit , listing the TEN projects that are to be completed . It leaves open the question as to how much money the EU will be chipping in towards the TEN projects , as too , though , is the question of whether the Stability Pact supplants the Growth Pact or vice versa . I would have thought that growth is impossible without stability , for , at the end of the day , today s debts are tomorrow s taxes . Mr President , Mr President-in-Office of the Council , Mr President of the Commission , ladies and gentlemen , I want , in this speech , to focus in the main on the work of the Intergovernmental Conference , which forms , indeed , the centrepiece of the Italian Presidency of the Council , and which we want to encourage the Italian Presidency to complete before the end of this year , that being the only way of ensuring that Europe will continue , post-enlargement , to be capable of taking action , transparent and acceptable to its citizens . This is a big task for the Heads of State or Government to take upon themselves in Europe s interests .

ID 60: Hernández Mollar (PPE-DE), (ES)

The vote will take place tomorrow at 11 a. m. The next item is the debate on the report (A5-0361/ 2003) by Mr Hernández Mollar , on behalf of the Committee on Citizens Freedoms and Rights , Justice and Home Affairs , with a proposal for a European Parliament recommendation to the Council on procedural safeguards for suspects and defendants in criminal proceedings throughout the European Union (2003/ 2179(INI)) . . Mr President , Commissioners , ladies and gentlemen , I would like to begin my speech by stressing the importance and significance of the recommendation we are debating today . **What we are dealing with today is** the

first initiative , in the form of a Green Paper , aimed at considering , together with other instruments , the future proposal for a framework decision which will regulate as its title states the minimum rules on the procedural safeguards for suspects and defendants in criminal proceedings throughout the European Union . Judicial cooperation between the States of the European Union , in both the civil and the criminal fields , is reaching levels which were unimaginable a few years ago . These levels will reach their peak when , at the beginning of 2004 , the European arrest warrant enters into force , if things go to plan and despite certain difficulties which appear to remain in certain Member States . This is why , at the moment , when the construction of the European area of freedom , security and justice is making progress , and concern about terrorism , organised crime and illegal immigration is increasing , we are seeing greater cooperation between police and judicial bodies of the Member States and it is becoming essential that we do not continue to ignore the necessary safeguards which suspects and defendants must enjoy during the criminal proceedings so that their right to a fair and impartial trial is guaranteed at all times . The purpose of the recommendations we are debating today is , therefore , simply to achieve a degree of unification of procedural practices in the Member States , on the basis of the rights established in the European Convention on Human Rights , the case-law of the Strasbourg Court and the Charter of Fundamental Rights of the European Union , and within the framework of the judicial and criminal convergence which today is being achieved in the European Union , based on mutual recognition , described as the cornerstone of judicial cooperation in the civil and criminal fields in the Union by the Tampere European Council .

ID 61: Evans, Jonathan (PPE-DE).

Yet the headline in the last week was : 'Campaign launched to save Constitution ' . MEPs are reported to be so concerned about the activities of national governments in the IGC that they felt it necessary to take to the streets in defence of the Convention 's plans . We have heard in the debate today that the Convention must be defended against something wicked that is called national self-interest . Those who have launched this campaign will find it rather difficult to rally the electorate to their cause ; according to a recent opinion poll , 61 % of the European electorate have never heard of the Convention at all and in the UK 83 % of people have never heard of it . **What people in my country and the rest of Europe want is** a

referendum on the Constitution . In a Eurobarometer poll published last week of the people polled in the 15 Member States and 10 accession countries wanted a referendum . In the UK that number is 86 % . Mr Duff is amongst them : his party also wants a referendum . He and I might differ significantly about the implications of this Constitution , but as democrats we should be in a position to argue our case with the people and to see what the outcome of that debate should be .

ID 62: Martínez Martínez (PSE). (ES)

As regards the general attitude of the Council and the Commission regarding Cuba , I refer the honourable Member to our debate in this House at the beginning of September . Mr President-in-Office of the Council , my question does not relate either to the trial of the Cuban prisoners or to their current detention . My question essentially relates to respect for the rights of families , who are being prevented from seeing these prisoners , despite the fact that these rights are enshrined in international law and in the law of the United States . It relates specifically to two women , who for more than four years have not been authorised to visit their husbands , and to a very painful situation which is once again being reported on in the media : today one of the wives has once again been refused a visa to enter the United States in order to see her husband . **What I want to know is** whether the Council considers this to be an issue worthy of its attention or not . I must apologise to the honourable Member because , clearly , my reply was not appropriate , so to speak , given the requests . I will commit to carrying out further checks and to replying as far as I am in a position to do so in writing to the honourable Member . Mr President-in-Office of the Council , I must insist on this issue , since in October the President-in-Office of the Council promised us that he would reply in writing to all the questions we presented , and this has not happened . So far we have not received any reply .

ID 63: Krivine and Vachetta (GUE/NGL), (FR)

Certainly not the citizens of Europe , who were excluded by the Convention from the process of laying down a constitution from the very start . Certainly not the social movements and unions , who have been manipulated from the outset by the Eurocrats for ultimately failing to take account of their additions on social and democratic rights . The IGC deadlock is not the result of divergent opinions on the

European Project , but on a murky story of qualified majority voting . This is incomprehensible and derisory ! **What is needed is** a complete break with the past . Political Europe is under construction , but this cannot be done without and against the citizens . We must start by redefining a European project that can break free of the dictates of the market . This Europe would be more socially and democratically advantageous . Priority would be given to democracy , social rights , public services and peace .

ID 64: Figueiredo (GUE/NGL). (PT)

We know , however , that maritime pollution , from spillage of oil or other noxious substances , continues even when accidents do not occur . Illegal dumping and emptying of tanks , either on the high seas or close to shore , must be subject to sanction . We also know that the fight against dumping will not only require more legislation , but also , more importantly , greater effective enforcement . In this way , Member States will have at their disposal the appropriate resources and equipment to ensure compliance with existing rules . **What is needed is** the abolition of flags of convenience , the maintenance of accurate and well-structured logs of a ship s history , its movements and cargo , the establishment of shipping lanes further from coastlines , the adequate inspection of ships in port and better working and on-board safety conditions . We know that the MARPOL Convention is ignored on a daily basis by a large number of ships sailing in EU waters , since the principal objective of certain shipowners and oil companies is to obtain maximum profit at minimum cost . However , the fight against pollution discharges requires not only effective measures at EU level and greater cooperation between Member States , but also more effective enforcement at world level . Creating an EU coastguard will not solve this problem , and nor will it solve the problem of the lack of adequate resources for ship-sourced waste or the requirement for ships to use such resources . What is needed is for directives and other legislation in place to be enforced , including the system of information and monitoring already set out in another directive specifically as regards the installation of data recording devices for journeys on certain ships , without which it is difficult to prove the guilt or innocence of a ship s crew , who must be considered innocent until proven guilty .

Error: Mathieu (EDD). (FR)

According to the Nantes INRA study , in 2008 partial decoupling could result in as much as a 32 % drop in simulated income for an intensive dairy farmer because the decoupled aids will not compensate for the 20 % fall in the price of milk envisaged for 2006-2008 . The drafting of this report gave an opportunity to consult a number of experts on the subject . They all underlined this intrinsic paradox of the latest common agricultural policy reform . How indeed can we think of pushing up costs through multifunctionality while at the same time wanting agricultural prices to fall by bringing European prices into line with world prices ? **What solution is** there for farmers trapped between rising production costs and falling prices . No expert has been able to tell us that . Finally , the report explains a risk that is of particular concern to me , namely the eco-conditionality of aids for small farms , since their income is going to depend increasingly on aids , especially with decoupling . A small farmer who failed to comply with one of a very large number of directives , including the Loiseau directive , would have his aids , and therefore his income , cut off . The incomes of farmers who are already fragile and who have little capacity to invest will be reduced .

Error: Álvaro Uribe, (ES)

Violent deaths of indigenous people , indigenous aid workers and environmentalists , cruelly persecuted by terrorist groups , have decreased as a result of State presence in the ancestral territories . Internal displacement is one of our great tragedies resulting from terrorism . During the last year it was reduced by 53 % and 11 140 families have returned to their places of origin . Although we have made some progress , the job has hardly begun . **What country can** accept 2 200 kidnappings in one year ? We will only claim victory when the massacres and acts of terror are completely eradicated , because every one of them brings pain to the entire nation , such as the car bomb set off by the FARC in the Club El Nogal , exactly a year ago , killing 33 and injuring 173 ; or the rural worker from La Unión Peneya , who was burnt alive by terrorist guerrillas because he refused to abandon his home and swell the numbers of displaced people ; or the peasant woman from Tibú , who lost her leg as a result of a mine while she was out walking with her five-year-old daughter . The constitutional reform which introduces anti-terrorist laws was approved by Congress amidst national and international debate . The powers given to security

forces to capture , intercept and carry out raids in cases of terrorism were subject to the subsequent approval of a statutory law , and also to other guarantees such as the obligation to bring the case before the courts within 36 hours , the immediate dispatch of a report to the Public Prosecutor and periodic scrutiny by Congress . The law is less stringent than those in force in many Western democracies .

ID 65: Swoboda (PSE). (DE)

I stress the need both for potential service providers to be treated impartially and for there to be security of provision , the latter of which must be ensured even if aid payments are needed to do so . The fact is that we need services of general interest only where the market is unable to guarantee these services on a universal basis , at affordable prices and to a high standard of quality . Mr President , Commissioner , I have to admit that I prefer to discuss foreign policy with you , because that is where your heart lies . The fact is , though , that you have to take this opportunity too . **What I did not** like about the statement you had to deliver , I think , was its failure to acknowledge that the present European social model is supported by a majority of this House . A narrow majority perhaps , but still a majority . I believe it is also supported by the majority of the European population , who see services of general interest as something different from the other goods and services that are on offer . I believe that the basis for any consideration of services of general interest is the identification of the specific interests of the general public , and here I am certainly at one with Mr Karas . In contrast to many other services , people can also help to determine , by the way they vote in elections , the range of services of general interest available to them , especially if these services are provided by or on behalf of regional or local authorities .

ID 66: Medina Ortega (PSE). (ES)

That is to say , in the infringement procedure , the Commission is not the Court of Justice , but an agent of Community law which tries to ensure that the law is applied , by demanding that the State comply with Community legislation . And in this case , I believe that the Commission has done that , although perhaps rather belatedly . The result of an infringement procedure , once the State in question has complied with Community law , is the closure of the case , because as Mr Patten has also said there is a repeated judgment of the Court of Justice of the European Communities

according to which there is no case for infringement when the State in question has complied with Community law . I believe that Mr Perry has a laudable interest in the Community institutions functioning properly and , of course , it would be desirable for us all to do the same with all the directives that are not transposed by the Member States . **What does not** work here is a mechanism of fines and penalties imposed by the Commission . The Commission does not have those powers . Only the Court of Justice should have them and , specifically , I would refer Mr Perry to British law . Continental administrative law allows a State to be called to account for non-compliance with its obligations , including , for example , the failure to transpose a Community directive in time . But I have the impression that the procedure which is being tried here is not going to lead anywhere , because I do not see how the Commission , at any point , is going to be able to invoke non-compliance with a Community directive in the past on the part of the State in order to call them to account .

ID 67: Zabell (PPE-DE). (ES)

Mr President , sport is not just about performance , competitions and elite sportspeople ; it is also about developing a sense of community and a common purpose ; it is about humanity itself . Ladies and gentlemen , these are not my words . They are the words of the United Nations Organisation , the UN . I fully support them , however , and I also fully support the idea that this Parliament should back the Olympic truce . **What does seem to me to be important is** that sport should not be politicised . As far as possible , sport must be kept outside of politics and must serve as a tool for constructing , never for destroying . Sport must be a tool for promoting peace and understanding . With regard to the Olympic truce , we are not talking about anything new . There have been Olympic truces every two years , for the summer games and for the winter games , for many years , and at the end of last year the United Nations adopted a resolution urging its Member States to observe the Olympic truce .

ID 68: Prets (PSE). (DE)

Although Mrs Karamanou pointed out earlier that we are this year celebrating 20 years of the Committee on Women s Rights and Equal Opportunities , it must also be stressed that here , in this House too , women labour under a double burden . We

are actually represented on three committees because the Committee on Women s Rights is not considered important in this House , and it is there that we endeavour to muster all our strength , because it is there that we have to work for recognition and grapple with many difficult issues that are not always welcome in public debate . The Bastos report on equality and the reconciliation of work and family life certainly presupposes , among other things , equal pay for equal work , which would make it easier to share out paternity and maternity leave , as one or other partner would have a free choice in choosing to spend some of his or her time with the children , while the other would remain at work . The present situation is that the decision is always taken on the basis of the financial situation , and this generally works out better for men . **What this means is** that one of the important principles for which we have been campaigning for a very long time , even though it has its defects , must now at last be put into practice . If we want to achieve the Lisbon objective , this is another area where we need to devise a rigorous policy for women and families , as a developing economy needs women at work and women who are mobile ; above all , it needs women who are willing to have more children if the conditions are right . What I very much want to re-emphasise is the concept of the family . What is a family ? That , too , has to be defined .

Error: Boudjenah (GUE/NGL). (FR)

The European Union cannot continue to be complicit in the continuing occupation of the Palestinian Territories by Mr Sharon s government , in the theft of the produce of the land , in the confiscation of profits and in the denial to the people of the means of their existence and their very survival . The 1995 agreement followed closely on the heels of the Oslo process . It was designed to be a contribution to the peace process . The situation today is totally different . **What type of cooperation can** we be talking about ? Mr President , Commissioner , what we are discussing here is the 1995 Association Agreement . I have absolutely no objections to this agreement in itself . It contains fundamental standards and values that demonstrate respect and , in itself , we can support Israel as a democracy . That is not where the problem lies .

ID 69: Grossetête (PPE-DE). (FR)

Seeking closer identification with the European Union and with its actors , they would also like Europe to be closer to them and to care more about their future . The Convention has done even more than to outline the face of the new Europe ; by specifying its competences and putting faces to decisions , it has fashioned the European Union s body . It has created essential linkages that will enable our political design to progress . I believe it needs to be said , and repeated , that the draft constitution produced by the Convention under the former French President , Mr Giscard d'Estaing , is a good one . **What makes it the best of compromises is** the fact that , rather than aiming to combine national institutions , it proposes a wholly new structure , one that makes for greater effectiveness and clarity and is in line with modern thinking . I find it regrettable that last December saw a triumph for introversion , for individual interests , for the self-centredness of the nation states . What place is there for the European public in this masquerade ? Above all , as this House had said , the Intergovernmental Conference is a thing of the past . The Convention , a novel form of institution , was a gamble that paid off , even demonstrating that the intergovernmental method is no longer suited to the modern-day needs of the EU .

ID 70: Gollnisch (NI). (FR)

The trouble is , however , that the European Union is not , strictly speaking , a State . The European Union does not , therefore , need a constitution because , contrary to what Mrs Grabowska says , an international organisation does not need a constitution . This is precisely why the League of Nations referred to its founding treaty as the pact , why the United Nations calls its treaty the Charter and why every international organisation has a founding treaty . Whilst the Constitution that you are proposing is being presented , in essence , as a codification of the Treaties , the very fact that it is referred to as the Constitution is ample proof of the direction in which you want to go : you want to move towards establishing a super-State , which will dominate the political , economic , diplomatic and cultural life of all Europeans , down to the last detail , regardless of the decisions taken by freely elected governments . **What you are creating is** a new Soviet Union , and that is exactly what we do not want . Mr President , it is a great honour and privilege for me to be one of the first Polish Members to address the House after the Union s enlargement

. This is an historic occasion , and I am particularly pleased to be speaking on behalf of the Group of the European People s Party (Christian Democrats) and European Democrats , the largest group in the European Parliament , and a group that has made a major contribution to the enlargement of Europe . The enlarged European Union is generating great hopes , not only among the old Member States , but also among the new countries joining the European Union . This is particularly true in the case of my own country , Poland .

ID 71: Berès (PSE). (FR)

We object on principle to the approach that does not differentiate between the new Member States . It is in Europe s mutual interest to make optimum use of the trained workforce and the strategic advantages offered by the flexibility of the labour market , and on this basis to become the fastest growing region in the world . And now , Mr President , for the social Europe ! It is my belief that , if we want this enlargement to still be a real cause for celebration in the years to come , we have to meet our fellow-citizens expectations . **What they ask of us is** a social Europe , an economic and social model to be the continuing backbone of our European Union , and jobs for all . For that , then , there are three great guiding principles . The first is this : where are we going , tomorrow , to create added value in the European Union ? The EU will have to reflect on this and on what tomorrow s jobs will be . They will be local jobs .

ID 72: Watson (ALDE).

Liberals and Democrats in this House want a Commission that is at least one-third women . We might remind you that if the gender balance of the Council reflected that of Europe itself , it would be thirteen to twelve . We need a debate on Turkey . Let us have that debate , openly and frankly . **What we are committed to is** hearing out the Commission when it makes its recommendation in November , and we expect the Council to do the same . Nor do we all agree on the correct level of funding for the European Union over the next seven years , but we do share a commitment to ensuring value for money and focusing on the Union 's key priorities . If this presidency can publish guidelines and principles for the negotiations in December we will have the basis for an intelligent debate on future financial perspectives . Liberals and Democrats share

your realism , but we hope it comes with a ballast of ambition and vision . You must decide on questions which will define the future of our Union .

ID 73: Barrot, (FR)

We did not allocate EUR 1.5 million to the preliminary draft Budget for 2005 in order to reduce the projects , but because , at the time the preliminary draft Budget was being drawn up , we were still too uncertain of the eventual outcome . In any case , we declared our intention of reviewing the situation with you in the course of the Budget procedure . The situation is clearer now , and we are ready to act on the basis of the appropriations that your House and the Council , represented by Mr Nicolaï , estimate will have to be set aside for this purpose . The Commission is imposing no restrictions in this respect . **What does actually matter is** that the necessary funds be used once the enterprise is underway . So let there be no misunderstandings on that front . Nor let there be any misunderstanding of what I have said . We think that the Commission would be incapable , on its own , of devising an information campaign . While again thanking Mr Leinen , I would also like to stress the fact that we are agreed , in particular , on item 6 of the motion for a resolution , which states that the Council , the Commission and Parliament must prepare an appropriate campaign and a communications strategy , and that this necessitates a joint effort by all the parties .

ID 74: Kasoulides (PPE-DE).

Mr President , the message that should go out from this debate is that not only Parliament but also the Greek Cypriot Members wish for the economic development of the Turkish Cypriot community through economic assistance and unhindered trade around the world . We are satisfied that the rapporteur has introduced a vital amendment , making sure that EU money will not be used in a way that impinges upon individual property rights according to the relevant decisions of the European Court of Human Rights . I also welcome the fact that the Council appears ready to reach a consensus on the regulation . I stress the importance of consensus on the issue of trade , without time constraints and on a correct legal basis , as advised by the legal department of the Council . **What is needed is** creativity and adherence to the international legal status of the Republic of Cyprus , a Member State of the Union . I have perceived during this

debate that certain colleagues , in their efforts to help the Turkish Cypriot community , underestimate the importance of the message that the Greek Cypriots are also in favour of economic development for Turkish Cypriots . This is not a 'zero-sum ' game . Following the last referendum , and with all due respect to the decision of the sovereign people , neither Turkey nor Cyprus is discharged from its responsibilities to continue searching constructively for a mutually agreed solution . The messages coming from this debate build bridges between the two communities and do not create unnecessary disputes and confrontation between them , and due attention should be paid to them .

ID 75: Nicolaï,

This applies to the whole election process , from the start when the candidates present themselves to the final tallying by the Central Election Committee . It requires a situation where the most hotly contested issues , such as absentee balloting and local election observers , are addressed beforehand . I do not want to discuss individual persons . It is not the EU s position to support one candidate over the other . **What the EU s position about and we have insisted on this from the very sta rt is** that the process should be transparent , free and fair , so that the Ukrainian people can trust that the outcome of the elections reflects their will . Only then can we ensure that the new President is the President of all Ukrainian citizens , and not just of those from the east or from the west . That way , territorial integrity will also be maintained . The crisis in Ukraine does not require just the EU to act . It requires an involvement from all international players , such as the Council of Europe , the OSCE , the US and Russia .

ID 76: Ferrero-Waldner, (DE)

Ukraine must remain intact as a viable state . Dividing the country would result in a grave crisis , hence the statements that all of us that is , the various European institutions have made about territorial integrity . Just before this debate , I spoke with Mr Tarasyuk , the former foreign minister , who is present in the visitors gallery . He assured me that it would not be from the opposition that the first move towards violence would come . **What that means is** that they want a peaceful solution , and

that is what we too are working towards . I would like to consider two issues that have arisen over and over again in the past few days and are hanging over us : have we that is , the European Union done enough to help Ukraine move to democracy and to a market economy ? I believe that we have . We have done what we could . For a start , the EU is not just the largest donor to Ukraine , having , since 1991 , allocated over EUR 1 billion to it under TACIS and other programmes , much of which was and is continuing to be used for programmes promoting democratisation , institutional reforms and human rights initiatives ; it has also always offered Ukraine a specific and clear perspective .

ID 77: Pinheiro, João de Deus (PPE-DE), (PT)

Let us be clear . To think that Europe , the new Europe , our Europe , can be built with the resources of the past is a fallacy and it is worth saying that if ambition and solidarity do not go hand in hand at this summit and in the orientations and guidelines that are adopted , we should be ashamed of our current leaders . Mr President , this brings me to external affairs . The Council services tell us that the Council is to discuss the Middle East , Iran , Iraq , Afghanistan , the Mediterranean Partnership and , I should add , probably the situation in Ukraine , Darfur , relations with China and Russia and even Transatlantic relations . **What I am wondering is** that with an agenda of which I have only mentioned a few topics , with the desire for a joint , EU-level external service , what resources will we use to seek to influence the international scene ? Will we continue to be a soft power , striving for multilateralism without being in any way active on the international scene ? Or will we have at our disposal the resources the appropriate resources to finally stop being the political dwarf of the international scene ? Mr President , ladies and gentlemen , I shall conclude by saying what I said at the beginning . It is crucial that we speak about the Lisbon Strategy , about combating drugs or AIDS , about the new neighbourhood policy and about sustainable development .

ID 78: Kósáné Kovács (PSE). (HU)

In the so-called Lisbon process , we need to be familiar with the norms of the Constitution , its social norms and also know that norms require more and more guarantees in order to build a social Europe , strengthen solidarity and secure social

tolerance . The Constitution is our basic law , but as many have said before , it is not a final document set in stone . Let me mention two areas that reflect our future challenges . Firstly , the challenge of a multicultural Europe . **What I mean by this is** not the question of Islam , but the challenge that our Europe is religious and secular . Secondly , the question of minority issues . During the ratification debate , the Hungarian parliament urged that minority rights should be strengthened in community legislation . I believe that our common European citizenship is the key to overcoming discrimination and the insecurity of national identity . Let us take advantage of the opportunities provided by European citizenship !

ID 79: Zaleski (PPE-DE), (IT)

Yet sometimes merely giving money has no effect . As a member of the Polish Academy of Sciences , and hence a representative of education , which the Commissioner mentioned earlier , I would like to draw your attention to one issue . The research I have carried out to date indicates that only a little over 30 % of those who come from poor countries to study at leading European , American or other universities return to their countries of origin , whether they are here to gain master s or doctoral degrees . We are helping one or two people individually , but this is no help at all to the poor country . **What needs to happen is** for these people to return as technological experts in agriculture , education or any other field , in order to become the elite and the driving force of the economy . This is one way to reduce hunger and poverty . With regard to the matter we are discussing here , I once had the opportunity to exchange a few words with Commissioner Michel , and I believe that we agree that it would be useful to put forward a proposal , and if possible to implement it , whereby a certain amount of money would be earmarked in the budget to help those returning to poor countries to adapt , or rather re-adapt , to poverty during the transitional period before they find a suitable job that is in keeping with their skills . This would be a great help , and in some ways an extension of the scholarships and financial assistance we offer for them to come here and study in our countries . In other words , ladies and gentlemen , we do not really need these Ph. D. s from Mali or the Congo , as we have our own , yet they are very much needed in their own countries .

ID 80: Blokland, (NL)

Mr President , first of all , I should like to thank Mr Lipietz for his report on the European Investment Bank s activities . We saw last year in the Committee on Economic and Monetary Affairs with Mrs Ridruejo s draft report that it is not easy to draft a report on the EIB s activities . Thinking about European institutions to such extremes is unproductive and does not do any justice to the situation in which the institution has to work . The concise report we are discussing today , however , is balanced , and I have a few remarks to make about it . **What I find regrettable about Mr Lipietz report is** the lack of attention given to the impact that the granting of credit has on the environment . The EIB s environmental report is , in my view , too restricted . The granting of credits to businesses must also be assessed in terms of its environmental effect , and that is why I would argue in favour of including an environmental impact report in credit assessments . The rapporteur is right to conclude , in paragraph 20 , that greater attention should be paid to improving the auditing to which the EIB is subject . In addition to assessing the credits and the conditions under which they are granted , the EIB s organisation should also be assessed .

Errror: President.

On 8 April 2003 two cameramen , Spaniard José Couso working for the television station Telecinco and Ukrainian Taras Protsyuk working for Reuters news agency , were killed in Baghdad when the American army fired on the Palestine Hotel , where several hundred non-embedded journalists were staying . On the same day , 8 April 2003 , Jordanian journalist Tarek Ayoub from the Al-Jazira channel was also killed during an American air raid . According to Reporters Without Borders , the report provided by the American authorities on the circumstances surrounding these tragedies is inadequate . It does not identify those responsible , and conceals the lack of communication between the soldiers who fired on the Palestine Hotel and their superiors with regard to the fact that journalists were present inside the building . **What steps might** be taken by the European Union with a view to an independent inquiry being held into the circumstances surrounding the death of José Couso , in order that the culprits are identified and tried and the victim 's family receives compensation ? . The Council has on many occasions condemned the massacre of civilians , including journalists , and has always emphasised the need

for the authorities concerned to carry out extensive investigations each time an incident occurs . The Council is aware of the fact that a number of incidents have still not been properly explained and have still not been investigated thoroughly . It will continue to bring up these incidents and to call for investigations within the desired timeframe .

Error: Daniel Caspary, (DE)

What will the Commission do to get the Member States , without delay , to put in place effective market controls preventing such products from being put on sale and compelling the Chinese manufacturers to comply with standards and patents ? Fifthly , there are to this day in China many obstacles to European firms . What does the Commission propose to do in order to effectively remove these barriers to trade , most of which do not take the form of tariffs ? Sixthly , modern weapons contain the most modern of technologies . **What adverse effects on businesses and jobs in Europe does the Commission anticipate if the embargo on weapons and on the transfer of associated techn ologies is** lifted ? Seventhly , what is the Commission actually doing to induce China to allow its currency s exchange rate to find its own level ? . Mr President , Commissioner , ladies and gentlemen , following on from what Mr Caspary has just said , there are a number of points I would like to address . I very much welcome the safeguards that have been put in place , and I hope that you can obtain reliable data , including reliable data from the individual Member States . As I see it , Romania is one example of how it is not that simple to get your hands on reliable data .

ID 81: Pedro Guerreiro, (PT)

It is the Council and the Commission , not China , that have thus far failed to activate the safeguard clause , in spite of the appalling situation that the EU s textiles and clothing sector is currently enduring , particularly in countries such as Portugal . Instead , they delay this crucial decision . I therefore ask the following questions : When will safeguard clauses be activated ? When will there be a revision of the Commission s mandate for WTO talks ? **What we must** do is suspend and reverse the current policies on trade liberalisation . What we must do is ensure a level playing field for trade , by introducing a system that is geared towards genuinely

and sustainably developing each country s potential , a system that is not based on dominance and dependency , a system that is thus geared towards urgently improving the standard of living for people across the world and towards guaranteeing their rights . . Mr President , the problems of the global textiles sector divide Europe into a north and a south camp . To put it succinctly , it pits the advent of cheaper textile imports against the maintenance of our own textile sector .

ID 82: Jorgo Chatzimarkakis (ALDE). (DE)

It is not just about the work we do ; rather , the cause is to be found in broad public opinion , and particularly the way in which it is reported in the media , for it is primarily they , rather than us alone , that influence the climate within which public opinion is formed , and so that is where we must start . Much as I am in favour of the efforts to standardise school textbooks and of the adaptation of information to the groups for which it is intended , what matters is that our public relations work that done here in the European Parliament and also by the other European institutions should become more professional . It is still the case , for example , that nothing dramatic happens in this House that might be of interest to journalists and would make the proceedings clearer . Our votes are held quite separately from our debates . **What this means is** that we have to get the fourth pillar of democracy , the fourth of the four powers , the media , more involved . That is what we must aim for . Mr President , Commissioner , ladies and gentlemen , thank you for giving me the floor . Allow me first of all to thank the rapporteur and the shadow rapporteurs for the work they have done on a subject as fundamental as the implementation of the European Union s information and communication strategy . I should like firstly to emphasise the context in which we are led to express an opinion on the EU s information and communication policy .

ID 83: Inés Ayala Sender (PSE). (ES)

Nevertheless , I am not pleased that Parliament should be demonstrating a minimalist tendency which began with the last Agenda 2000 and which has not helped to increase confidence amongst the European citizens . I am referring to the risk of the budget returning to a renationalising tendency and of basing the Union s objectives upon insufficient resources . We regret the pressure represented by the initial proposal of six Member States , some of which were perfectly understandable

given the current situation , but others are guilty of not sufficiently explaining the added value of each euro spent and the high economic and commercial return resulting from the Union 's development . We regret that the 1 % has replaced the ideas by percentage , but , on the other hand , it has also relaunched the debate on the urgency of fundamentally reviewing the system of own resources . **What we do not** agree with is the fact that the rapporteur applies it exclusively to the funding of the CAP , which is still trying to digest the last Brussels reform ; let us not throw our farmers out with the bathwater . We welcome the effort to maintain the share for the cohesion policy , and also the strengthening of the Union 's social policies , growth and employment policies and also justice and foreign policies . We would call on the rapporteur to extend the logical phasing out mechanism , which already acknowledges the regions affected by the amplifying effect of enlargement , and to apply it to the Cohesion Fund . The European Parliament defended it in Agenda 2000 and we do not understand why , when the Presidency-in-Office of the Council is applying it , Parliament is not now doing so . We also call on the rapporteur to accept Amendment 1 , which combats the discrimination that would result from applying the competition and excellence policy in an exclusive manner .

ID 84: Marianne Thyssen (PPE-DE). (NL)

Is it possible , therefore , not to take account of the opinion of 426 that was how many of us voted democratically elected Members ? Personally speaking , I hope and I conclude that after last week s unpleasant test , a balanced agreement is reached , mindful of the prevailing positions , and that that occurs as soon as possible , without indulging in the extended time still available . Mr President , as the Group of the European People s Party (Christian Democrats) and European Democrats coordinator on our parliamentary steering group for the Lisbon strategy , I should like to start by expressing a degree of satisfaction . Satisfaction about the fact that under the Luxembourg Presidency , the Lisbon strategy was given another shot in the arm and can really get underway now that this last , particularly tricky summit has approved the integrated guidelines . **What this shows is** that social cohesion , sustainable development and the new emphasis on growth and jobs remain priorities shared by the three institutions . We know that the Member States play a leading part in this strategy , now and in future , but also that Europe has a

task of its own . In order to be able to carry out our part of the bargain , we need money ; the failure to reach agreement on the financial package means that this is not , or is in any case insufficiently , forthcoming . It is shameful for various reasons , which have been explained here by others , certainly in respect of the new Member States . What is particularly unfortunate is the embarrassing manner in which the lack of political will to further develop the European Union together was exposed .

ID 85: Ilda Figueiredo (GUE/NGL), (PT)

Although I have consistently called for Parliament to address this issue , I still feel that this report deserves my vote in favour and my hope that it will prove effective . . As I said at first reading , the reform of the Stability and Growth Pact (SGP) fell short of what was required . The same objectives and criteria were reaffirmed and indeed more time was given . **What was really needed was** the scrapping of the SGP and a clean break from the prevalent economic and monetary policies , in order to create a macroeconomic framework capable of fostering sustained economic growth and employment . This was not the case . The excessive deficit procedures continue to be implemented , not least in Portugal , the worst aspect of which is that it serves to justify the austerity measures contained in the stability programmes put forward . This is true of Portugal , where taxes have gone up and where there has been a concerted attack on public administration , and in particular on public officials . There is still no desire to learn the lessons that need to be learned .

Error: Charles Tannock (PPE-DE).

As I sought to reflect in my initial answer , we wholly condemn actions which are taken towards inciting the kind of terrorism and acts of violence which he describes and I hope my earlier remarks reflect the seriousness with which we regard this problem . I would like to thank you for your considered reply and also for the fact that the British Government has belatedly given consideration to banning Hizbollah s so-called civilian wing , whereas in fact there is no difference between the civilian and the military wing . Today was a great day for the city that I represent , London , in our winning the Olympic bid for 2012. One of the messages from the Prime Minister in Singapore was that the Olympics will be used as a vehicle for peace and friendship amongst nations , as a way of combating this kind of hatred between peoples . **What more can** be done to stop EU Member State registered companies

giving advertising revenue to television companies like al-Manar ? In addition , what pressure can you bring to bear through the Council on the governments of Egypt and Saudi Arabia to stop them broadcasting to the Arabic-speaking communities resident in EU Member States listening to this hate-filled type of broadcasting ? . First , let me say that I would disagree with his characterisation of the British Government s position in relation to Hizbollah , but this is not the forum or the occasion to explore these issues , which are more directly of relevance to the national authorities of the United Kingdom than to our role as the Presidency . I am , however , grateful to the honourable Member for his warm welcome to his home city s success in securing the Olympic Games and let me assure him that there are plenty of opportunities in bilateral forums and indeed in contact between the European Union and other nations outwith the European Union to raise exactly the kind of concerns of which he spoke this afternoon .

ID 86: Milan Horáček, (DE)

Enlargement must not , however , be taken too fast . Every country must fulfil the requisite accession criteria : not only on paper but also in practice , in a reality that the people can apprehend . Even though Bulgaria and Romania have made great strides since the fall of their Communist regimes , I find it regrettable that neither has yet developed much in the way of a political culture . There are still too many problems involved in doing away with the cumbersome bureaucracy , despite the positive efforts that have been made to that end . **What is worthy of criticism is** the failure to make much headway in reforming the justice system , the widespread corruption in the police and the judiciary , considerable shortfalls in the integration of minorities , the poor economic development and social and environmental problems . The shocking success of the extreme right-wing Ataka party in the Bulgarian elections , which got into parliament with 8 % of the vote , has done nothing to improve the overall political climate . It is to be feared that this will make the task of forming a government more difficult and further slow the progress of reforms . What is important is that we send a signal to those who hold responsibility in both countries . Unlike most members of my group , I am persuaded that we should invite observers to this House only after the progress report has appeared and a decision on accession has been taken .

ID 87: Othmar Karas (PPE-DE). (DE)

Let us have from you , at last , not only words , but also action ! If the European Union wants to be the answer to globalisation , we need more of the European Union and a common foreign , security and defence policy to give tangible form to the concept of political union without delay . If the European Union wants to deliver a credible , serious and speedy response to the menaces of terrorism , drug use , people-trafficking , illegal immigration and corruption , we need more money and more of the European Union . If we are serious in wanting more growth , more jobs created , more and better research and development , better social security and to fight more effectively against poverty , we need more money and more of the European Union . **What we do not** need is for more demands to be made on the EU , more pious lipservice and buck-passing . We need more policies , more of a will to joint action , more determination , more political action , more European Union . The European Union goes the furthest towards solving all those problems for which national borders present no obstacle . For terrorists , egoists , extremists and opportunists , an EU with powers returned to its Member States is the best of friends ; a common Europe , a strong EU , is their most deadly adversary . Mr President , it has already been said that the two speeches that we have heard this morning differ somewhat in the approaches they reflect .

ID 88: Harald Ettl, (DE)

Basel II is also intended to create a level playing field for competition between the big banking groups and the savings banks and credit unions that operate on a regional basis , and it was for that reason that I pressed for the greatest possible objectivity in the treatment of what are termed inter-bank loans . I would like , not least , to highlight what is now the dual responsibility of the national supervisory agencies as regards both the monitoring of the banks more precise risk assessment methods and supporting banks that operate in more than one country when the supervisory authorities in both countries cooperate with one another . Last but not least , I would like to revisit the subject of comitology . The rules on information and transparency that Parliament is demanding for Basel II are actually taken for granted in modern legislation , and that should also be reflected in the right of recall . **What we want from the Council is** a guarantee that , in two years time at the latest , there will be a solid agreement enabling Parliament to continue to exercise

its democratic rights and responsibilities . . Mr President , ladies and gentlemen , the object of this draft directive is the implementation of Basel II in the European Union , thereby establishing a basis on which the financial markets may be made more stable . Banking supervision can be made more efficient and greater weight attached to the risk element involved . The directive will also impose minimum standards for high-risk businesses .

ID 89: Wolfgang Kreissl-Dörfler (PSE), (DE)

That there is the fear of asylum being abused is not a matter of doubt , but we must not allow that to induce us to betray our values . What is needed are common European minimum standards for the treatment of refugees , founded upon the rule of law and upon international conventions and obligations under international law such as the Geneva Convention on Refugees . The Council presented us with its proposal for this directive , for consultation purposes , only in November 2004 , having already taken its decision . One might call this uncooperative cooperation , and it is something that we reject outright . **What the Council has** now presented us with is also a long way removed from the objectives formulated at Tampere in 1999 , and one consequence of that is that the majority of us in the Committee on Civil Liberties , Justice and Home Affairs and the advisory committees have come to the conclusion that the directive falls short of all expectations in that it makes no significant progress towards harmonisation , in that there are too many instances in which the Member States are allowed to retain their own legal arrangements . There are in particular a number of points that give great concern as regards respect for internationally-recognised human rights and the principles of the law as it applies to refugees , and so we have proposed a number of vitally important amendments . For a start , we reject the concept , set out in Article 35a , of what are termed super-safe third countries , that is in itself an outstanding achievement in terms of global philosophy , favouring instead a modification of the concept of safe third countries in Article 27 , which , it is important to note , we want to be applicable only if the third state has ratified , and complies with , the Geneva Convention and other international human rights treaties , adhering in particular to the principle of non-refoulement provided for in the Geneva Convention on Refugees . The person seeking asylum must have the opportunity to set out the reasons why his or her safety cannot be guaranteed in the safe third country or in his or her safe country of

origin . Secondly , we want to reinforce the asylum seeker s right to an effective legal remedy in accordance with Article 38.

Error: President.

We will be taking a number of questions to the Commission . The current world situation regarding infectious animal diseases is very worrying . The FAO recently warned that bird flu is likely to be carried to the Middle East and Europe by migrating birds . Foot and mouth disease recently reached Russia via China and Central Asia . **What measures is** the Commission taking to prevent these infectious animal diseases from spreading into the EU ? What geographical region do these measures emphasise ? What is the role of vaccination ? How are people in Europe informed , for example about the ban on importing food from third countries in luggage ? As Commissioner Kyprianou has been held up by a meeting on precisely this problem , he has asked me to stand in for him , and I am pleased to do so .

ID 90: Frithjof Schmidt, (DE)

The establishment of a UN Human Rights Council is a good thing , even if its composition is not yet clear . The doubling of the resources of the High Commissioner for Human Rights is also good . Another positive development is that there will be a Peacebuilding Commission . It is good that the Millennium Development Goals have been reaffirmed and that various action programmes and solidarity funds are being set up . **What emerges from this is** a specific challenge for the European Union , and so I wish to call on the Council and the Commission to present a precise action plan for the specific financial and organisational contribution of the European Union to the implementation of these measures . The aim now , in the wake of the Summit , is to back up the rhetoric of the United Nations with specific , material support . . I , too , should like to say that the glass is half full , but we all know that this is not true . The summit was a failure . Whilst the summit did reaffirm the modest Millennium Goals , it was prevented from turning words into action .

Error: Charlie McCreevy,

I have never hidden these views . I also have my views about how the challenges and opportunities arising from globalisation should be addressed and I do not believe it is an option to maintain barriers and try to pretend that competition does not exist , or can be kept outside the borders . However , I have never said that there is a single recipe for running every economy . There is no single recipe for organising labour relations and there is no single recipe for a social model . **What works in one country might** not work for another . I will therefore not express any view on whether the social model of one Member State is better or worse than that of another . That is a matter for political choice in each country and I know that every system will find supporters and critics . The truth lies , most of the time , in the middle . No single system has only advantages .

ID 91: Hans-Gert Poettering (PPE-DE). – (DE)

Mr President , I would in fact like to put the case for a vote on the resolution . In the Conference of Presidents , I saw fit to argue that there should be no resolution , my justification for this being that we should wait to see what comes back from the delegation before drafting one . As its Chairman , I am of course dependent on my Group s support , and so I reported this to them this morning . The Group was unanimous in its view that we should in fact frame a resolution today . **What that means and I am not** ashamed to admit it is that the Group s opinion differed from my own . I am under an obligation to act in accordance with the Group s vote , and so , good democrat that I am , I am in favour ... ... yes , and I wish others would do likewise and say that they accept what the group bids its chairman do . Our group s opinion is that we should not await the outcome of the delegation , but should instead make our views on the subject known now . It is for that reason that the Group of the European People s Party (Christian Democrats) and European Democrats is in favour of us coming to a decision on a resolution today .

ID 92: Hans-Peter Martin (NI). – (DE)

It is toothless because it is impossible that such an institution should have teeth . If you compare the powers of the European Court of Auditors with those of its Bavarian counterpart , the two are worlds apart . I know of only one institution constituted as a Court of Auditors that is even worse equipped in terms of theoretical

and practical powers than the European one , and that is the Audit Office in Vienna . Whenever discussion turns to how it might act transnationally , the constant refrain goes like this : I can assure you that the Court of Auditors welcomes any debate on potential improvements to the audit procedure . **What I suggest is** that you should be constructive . Put out a memorandum in which you , the Court of Auditors , cannot really discharge your duties because you lack the powers , because there are things that you are not allowed to do , and because the way in which your staff are selected which , politically speaking , is what makes everything happen means that you are not in a position to perform your functions . Do that , and you really will be doing Europe a service . That would be a first step towards transparency and towards making monitoring possible , both of which we need if we are to help this Union of ours regain its credibility . Mr President , listening to the UK Independence Party talking about the Commission not being able to manage its grandchildren s pocket money , I must say that I would rather have the Commission managing it than the UK Independence Party !

ID 93: Bart Staes (Verts/ALE), (NL)

In my opinion this does not afford even basic safeguards with regard to health and safety for the people most at risk . Here we have totally undermined the very foundations of REACH . On this point , however , it is salutary to note that the Council is more ambitious than Parliament . Long may it so remain . . **What the world witnessed today is** that it is easy to mislead a democratically elected parliament . All it takes is a few half-truths and total falsehoods . This House has shown the world that whoever shouts the loudest eventually wins the argument . Profits in the chemical industry in Belgium alone amounted to EUR 1.7 billion last year . That figure will be affected more by the high oil price and the low dollar than by the introduction of REACH in whatever form .

ID 94: Peter Mandelson,

We need to create a platform for genuine multilateral negotiation which , so far , does not exist . This reflects the importance of services in the modern world economy . It is important not just to us but to developing countries as well . These countries must clearly remain free in services to pursue national policy objectives and fully to safeguard their national right to regulate . **What we seek is** equal

treatment for foreign service suppliers in some sectors , not a commitment to deregulate markets or privatise existing operators . Here again , our proposal excludes weak and vulnerable countries and gives flexibility to other developing countries . To conclude , I will do my utmost to make a success of Hong Kong , to lock in the progress we have made and to establish a platform for us to finish the job in 2006. Above all , it is essential that the meeting does not end in acrimony . I will defend and explain Europe s proposals .

ID 95: Richard Corbett,

Our group will therefore support this proposal . . Mr President , as I am sure you are aware , almost all parliaments have rules in order to protect themselves against disruptive behaviour that is aimed at preventing them from working . It is not that the rules ever need to be used , maybe they will never be necessary , but it is important to have them as a democratic safeguard . **What our committee is** proposing today is a modest set of proposals . They would give you , Mr President , powers that are far smaller than the powers of , for instance , the Speaker of the House of Commons ; they are strictly circumscribed and are combined with safeguards to reassure those colleagues who feared that we were going to clamp down on any kind of behaviour that was in any way colourful or lively . That is not the case . But we are right to bring in a coherent and proportionate set of rules to protect ourselves if necessary . After all , at the last European election , a Member was elected who seems to have disappeared now , but who , at the time of the election , said his ambition was to come here to disrupt Parliament , to prevent it from working .

ID 96: Bernd Posselt (PPE-DE). (DE)

There are two main issues with which we in this House will have to get to grips . The first , to which reference has already been made , is the process of reshaping the constitution . The country is at present an unequal federation , and unworkable in the long term , with the Bosnian/ Croat Federation dominated by the Bosnians , the Serbs and their , and the Croats of Herzegovina , who keep themselves to themselves , but the ones who really are marginalised are those Bosnian Croats who can scarcely find a place for themselves in this scheme of things . That is why this structure will not work , even with the excessively bureaucratic addition of cantons

. **What is urgently needed is** for the reform of the constitution to bring about a symmetrical federation of all three ethnic groups , and it must at the same time prune the cantons and the bureaucratic superstructures that make it impossible for the country to be run efficiently . The second significant aspect is one that I have already mentioned , namely the faith communities and the absolutely fundamental part that they play in the country . A lot has been said here about Islam . When Bosnia became Austrian , the Austrians set up a public body for Muslims , and it is worth noting that it still exists in Austria today , making Austria the only EU country in which there is a representative organisation for Muslims that Muslims themselves accept as such . That is all tied up with Bosnia .

ID 97: Klaus-Heiner Lehne (PPE-DE), (DE)

Fourthly , against this background I believe that the statute for European political parties should be amended to enable the European parties to act more effectively for the benefit of the entire population and to perform their role as driving forces in the process of political decision-making . At the same time , however , I cannot deny that the parties could do more by their own efforts to achieve this aim of bringing Europe closer to the people and involving its citizens in what is happening here in Europe . I personally do not believe that a European list of candidates , parallel to the national lists , would be a means of solving this problem . Party lists are an abstract concept , and seats are allocated to particular parties , and many people cannot identify with that . **What we need is** a far more personalised European electoral process , and there is a very simple way of doing that : if at least the two mass parties in Europe could each decide to campaign in the European elections with a chosen leader who would subsequently be their candidate for election as President of the Commission , the elections would become strongly personalised within a fairly short time , and people would identify far more closely with individual candidates and with political statements of intent , which alone could probably lead to a considerable increase in turnout at European elections . I hope that the political parties will have the courage to take this step . . Mr President , I , too , rejoice in the way in which this report makes it possible for us to take a significant step further towards the consolidation of the European political party . The fact is that I do believe that , if we really do want to develop a real European

parliamentary democracy , truly European political parties will play an important part in it .

ID 98: Günther Verheugen, (DE)

It was during the past year that the Commission first presented them , and I am grateful to your House for giving them such close attention , for they will be a guide not only during this year but also thereafter to what we are considering doing and to the basis on which we will be doing it . The fact is that the growth and employment strategy , which we have been trying to implement for something like a year , is a completely new kind of process . It is not yet altogether straightforward to pass final judgment on the elements of this new process , but one thing can be said today , albeit with a great deal of caution , and that is that the Member States have in their national reform programmes , basically allowed themselves to be guided by the priorities set out in the integrated economic guidelines , as has the Commission with its proposal for a Community action programme . It is important that I should point out that the growth and employment strategy is based on a three-year cycle . **What that means is** that there is no intention that the guidelines should be amended from one year to another . They may well , though , be adapted to take account of changed realities and the insights that we gain from experience , and that will , of course be necessary , but we do not , at present , see any reason why these guidelines should be amended for 2006 ; they are still a sound basis for the dialogues in which the Commission is currently engaged with the Member States , the object of which is to get the national reform programmes actually up and running . As for the individual pillars of this strategy , my fellow-Commissioners Mr Almunia and Mr pidla will have something more to say about its macro-economic and employment aspects . I would like , briefly , to discuss its micro-economic dimension and highlight the significant advances that have been made in this respect in some areas , particularly as regards the key issue for Europe s economic future , namely the transition to a knowledge-based society and its becoming an economy founded on innovation , research and development . It was for that reason that we were so insistent on imposing quantitative targets for research and development .

ID 99: Paolo Costa, (IT)

If , however , a single security exists for all countries , then we cannot do anything other than define standard , potentially uniform , measures , and establish in a clear , transparent way how to pay for it . There could then also be additional measures , which are more stringent and apply only in particular countries . Even in this case , though , how can we guarantee that these independent measures do not interfere negatively with , and have repercussions on , the security of the other countries ? While we wait , reality moves on . **What we have today is** , in fact , a basic security financed through fares and extra ticket costs , and more or less cofinanced by the Member States according to the levels of security they wish to establish . This system must be regulated differently . I think that the Member States should at least pay for the surplus measures and that it is essential that there be clarity regarding the basic level of cofinance between operator or , better , user Member States . We must follow these principles at least in order to continue our work . Madam President , ladies and gentlemen , today s debate goes back to a very serious question from the Committee on Transport and Tourism about the financing of present and future measures in the matter of security .

ID 100: Christa Klaß (PPE-DE), (DE)

The compromise amendments adopted have substantially improved an initial proposal that I felt was inadequate and insubstantial . The inclusion of imported products , the special attention to products for children , the facilitated access for SMEs , the exclusion of fresh foods sold unpacked and the ban on health claims for alcoholic beverages (more than 1.2 % by volume) will make this a tougher and more complete directive . I endorse the Commission s proposal and the Poli Bortone report . Despite long debates and a great deal of effort at persuasion , we have not managed to regain our grip on reality . **What is crucial is** not the composition of a particular food , but the whole picture involving the interplay of healthy and balanced diet suitable for people when considered in terms of their specific situation as regards activity , age and gender . Any profile ought to take all these things into account , but , as these factors are constantly changing , we have to realise that there are no such things as nutrient profiles and that , instead , the only way open to us is that of education and upbringing , what rural German women call learning to handle everyday life , and which is best communicated through the family and school and

general education . I also hope that the traffic light -style labelling to which consideration is still being given is no more than a witless joke . Who knows , though , what can occur to such clever people ? One example of this approach s divorce from reality is that no such information may appear on drinks , such as wine , with an alcohol content in excess of 1.2 % by volume .